

The Limestone And Dolomite Mines Labour Welfare Fund Rules, 1973

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Union of India - Act

The Limestone And Dolomite Mines Labour Welfare Fund Rules, 1973

UNION OF INDIA

India

The Limestone And Dolomite Mines Labour Welfare Fund Rules, 1973

Rule THE-LIMESTONE-AND-DOLOMITE-MINES-LABOUR-WELFARE-FUND-RULES-1973 of 1973

Published on 15 November 1973

Commenced on 15 November 1973

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The Limestone And Dolomite Mines Labour Welfare Fund Rules, 1973

Published vide Notification G.S.R. 1273, dated 15.11.1973.

15.

/712

G.S.R. 1273, dated the 15th November, 1973. - Whereas the draft of the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973, was published as required by sub-section (1) of Section 16 of the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972 (

62 of 1972

), at pages 1278 to 1295 of the Gazette of India, Part 2 Section 3, sub-section (i), dated the 30th June, 1973, under the notification of the Government of India in the Ministry of Labour and Rehabilitation (Department of Labour and Employment) No. G.S.R. 689, dated the 12th June, 1973, inviting objections and suggestions from all persons likely to

be affected thereby, till the 15th August, 1973;

And whereas the said Gazette was made available to the public on the 30th June, 1973;

And whereas the objections and suggestions received from the public on the said draft have been considered by the Central Government.

Now, therefore, in exercise of the powers conferred by Section 16 of the said Act, the Central Government hereby makes the following rules, namely:

Chapter I

General

1.

Short title and commencement

-(1) These rules may be called The Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973.

(2)

They shall come into force on the 1st day of December, 1973.

2.

Definitions

.-In these rules, unless the context otherwise requires,--

(1)

"the Act" means the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972 (

62 of 1972

);

[* * *]

[Clause (2) omitted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]

(3)

"Central Advisory Committee" means a Committee constituted under section 7 of the Act;

(4)

"Chairman" means the Chairman of an Advisory Committee or the Central Advisory Committee, as the case may be;

(5)

"Commissioner" means a Limestone and Dolomite Mines Welfare Commissioner appointed by the Central Government under section 8, for the State or States concerned;

(6)

"Form" means a form appended to these rules;

(7)

"Fund" means the Limestone and Dolomite Mines Labour Welfare Fund;

(8)

"Member" means a member of an Advisory Committee or the Central Advisory Committee, as the case may be;

(9)

"Schedule" means a Schedule appended to these rules;

(10)

"section" means a section of the Act;

(11)

"Treasury" means any Government Treasury or sub-treasury.

Chapter II

Central Advisory Committee, Advisory Committees And Sub-Committees

3.

Composition

-(1)(a) The Central Advisory Committee shall consist of the following persons, to be appointed by the Central Government, namely:--

(i)

[Chairman;

[Substituted by G.S.R. 42(E), dated 22.1.1991 (w.e.f. 22.1.1991).]

(ii)

an officer of the Central Government, who shall be the Vice--Chairman, ex officio;

(iii)

two officers of the Central Government to be nominated by the Government, ex officio;]

(iv)

[Three Welfare Commissioners to be nominated by the Central Government, ex officio]

[Substituted by G.S.R. 52(E), dated 27.1.1999 (w.e.f. 27.1.1999).]

;

(v)

[such number of persons to represent the owners of limestone and dolomite mines as are equal in number to the aggregate of those provided in sub-clauses (ii) to (iv) to be appointed, after consultation with such organisations, if any, of the owners as may be recognised by the Central Government in this behalf;

[Substituted by G.S.R. 42(E), dated 22.1.1991 (w.e.f. 22.1.1991).]

(vi)

such number of persons, of whom one shall be a woman, to represent the persons employed in limestone and dolomite mines as are equal in number to those provided in sub-clause (v) to be appointed, after consultation with such organisations, if any, of persons so employed, as may be recognised by the Central Government in this behalf.]

(b)

An officer of the Central Government shall be the Secretary of the Central Advisory Committee and shall be entitled to attend and take part in the meetings of the Committee, but shall not be entitled to vote.

(2)

(a)

Each Advisory Committee constituted under section 6 shall consist of the following persons, to be appointed by the Central Government, namely:--

(i)

the Chairman;

(ii)

an officer called the Limestone and Dolomite Mines Welfare Commissioner, who shall be the Vice-Chairman- ex officio ;

(iii)

one representative of the Central Government- ex officio;

(iv)

a member of the Legislative Assembly appointed in consultation with the Government of the State concerned;

(v)

two persons to represent the owners of the limestone and dolomite mines, to be appointed, after consultation with the organisations of the owners, if any, as may be recognised by the Central Government;

(vi)

two persons to represent the persons employed in the limestone and dolomite mines, to be appointed after consultation with the organisations of the persons employed, if any, as may be recognised by the Central Government;

(vii)

a woman, if no woman has been appointed under sub-clause (vi).

(b)

An officer of the Limestone and Dolomite Mines Labour Welfare Organisation of the State or States concerned shall be the Secretary of the Advisory Committee and shall be entitled to attend and take part in the meetings of the Committee, but shall not be entitled to vote.

4.

Term of office

-(1) A member shall, unless he resigns his office or dies at an earlier date, hold office for a period not exceeding three years, as may be determined by the Central Government in each case, from the date of publication of the notification appointing him a member of the Advisory Committee or the Central Advisory Committee as the case may be, and shall be eligible for re--appointment:

Provided that an outgoing member may continue in office until the appointment of his successor is notified in the

Gazette of India.

(2)

A member appointed to fill a casual vacancy shall hold office for as long as the member whose place he fills would have been entitled to hold office if the vacancy had not occurred.

(3)

If a member is unable to attend a meeting of the Advisory Committee or the Central Advisory Committee the Central Government may nominate, or the body which is represented by him may, by notice in writing signed on its behalf and by the said member, addressed to the Chairman of the Committee, depute a substitute in his place to attend the meeting and such nominated or deputed member shall have all the rights of a member in respect of that meeting.

5.

Resignation

.-A non-official member may resign his office by letter addressed to the Chairman and the resignation shall take effect from the date of its acceptance or on the expiry of thirty days from the date of its receipt by the Chairman whichever is earlier.

6.

Absence from India

.-(1) Before a non-official member leaves India he shall intimate to the Chairman the date of his departure from and the date of his expected return to India, and if he intends to be absent from India for a period longer than six months, he shall tender his resignation.

(2)

If any such member leaves India without taking action as required under sub-rule (1), he shall be deemed to have resigned with effect from the date of his departure from India.

7.

Vacation of office

.-A non-official member shall be deemed to have vacated his office-

(a)

if he becomes of unsound mind or is declared insolvent; or

(b)

if he is convicted for any offence which in the opinion of the Central Government involves moral turpitude; or

(c)

if he is absent from three consecutive meetings of the Advisory Committee or the Central Advisory Committee without leave of absence from the Chairman; or

(d)

if, in the opinion of the Central Government it is not desirable that he should continue to be a member of the committee; or

(e)

if he ceases to represent the interest for representing which he was appointed.

8.

Power to co-opt

.-(1) An Advisory Committee or the Central Advisory Committee may, at any time and for such period as it thinks fit, co-opt any person or persons to the Advisory Committee.

(2)

A person co-opted under sub-rule (1) shall exercise all the powers and functions of a member under these rules, but shall not be entitled to vote.

9.

Power to invite persons to attend meetings

.-An Advisory Committee or the Central Advisory Committee or its Chairman may at any time and for such meeting or meetings as is or are considered necessary, invite any person or persons to attend the meeting or meetings of the Committee and a person or persons so invited shall exercise all the powers of a member under these rules, except that he or they shall not be entitled to vote on any question coming before the Committee.

10.

Remuneration to members

-(1) Every non-official member, including a non-official member co-opted under rule 8, shall be entitled to receive travelling allowance and daily allowance [and conveyance allowance]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1989 (w.e.f. 21.4.1990).]

in accordance with the instructions contained in the Ministry of Finance Office Memorandum No. F. 6 (26)-E. IV/59, dated the 5th September, 1960, as for the time being in force.

[* * *]

[Sub-Rule (2) omitted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1989 (w.e.f. 21.4.1990).]

(2)

[]

[Sub-Rule (3) renumbered as sub-Rule (2) by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1989 (w.e.f. 21.4.1990).]

The allowances under this rule shall be admissible only on production of a certificate by the non-official members to the effect that they have not claimed or drawn travelling or daily allowance [or conveyance allowance]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1989 (w.e.f. 21.4.1990).]

in respect of the journeys and halts from any other source.

Procedure Relating to Meetings

11.

Disposal of business

-(1) Every question which an Advisory Committee or the Central Advisory Committee is required to take into consideration shall be considered either at a meeting or, if the Chairman so directs, by sending the necessary papers to every member for opinion:

Provided that the papers may not be sent to a member who is absent from India.

(2)

When a question is referred to an Advisory Committee or the Central Advisory Committee for opinion, any member may request that the question be considered at a meeting and thereupon the Chairman may, and if, the request is made by three or more members, shall, direct that it be so considered.

(3)

If not less than three members of an Advisory Committee or the Central Advisory Committee request the Chairman thereof to refer any matter to the Committee, the Chairman shall refer that matter to it accordingly.

12.

Time and place of meeting

.-An Advisory Committee or the Central Advisory Committee shall meet at such places and times as may be appointed by the Chairman.

13.

Notice of meetings and list of business

-(1) Notice shall be given to every member present in India of the time and place fixed for each ordinary meeting at least fifteen days before such meeting and every member shall be furnished with a list of business to be considered at the meeting:

Provided that when an emergency meeting is called by the Chairman such notice shall not be necessary.

(2)

No business which is not on the list shall be considered at a meeting without the permission of the Chairman.

14.

Presiding at meetings

.-The Chairman shall preside at every meeting at which he is present and in his absence, the Vice-Chairman shall preside.

15. Quorum

.-No business shall be transacted at a meeting of an Advisory Committee or the Central Advisory Committee whether an ordinary or emergency meeting unless at least three members in the case of an Advisory Committee and ten members in the case of the Central Advisory Committee having the right to vote are present, of whom the Chairman or

Vice-Chairman shall be one:

Provided that if at any meeting less than three or ten, as the case may be, of such members attend, the Chairman may adjourn the meeting to a date not less than seven days later, informing the members present and sending notice to the other members that he proposes to dispose of the business at the adjourned meeting whether there is a quorum or not and it shall thereupon be lawful to dispose of the business at the adjourned meeting irrespective of the number of members attending it.

16.

Recommendation by majority

-(1) Every question at a meeting of an Advisory Committee or the Central Advisory Committee shall be decided by a majority of votes of the members present and voting on that question; but the minority shall in all cases have the right of requiring their dissent to be noted.

(2)

Every question referred to the members for opinion shall, unless the Chairman in pursuance of sub-rule (2) of rule 11 reserves it for consideration at a meeting, be decided in accordance with the opinion of the majority of members recording opinion with the time allowed.

(3)

In the case of an equal division of votes or opinion, the Chairman shall be given an additional vote or opinion.

17.

Minutes of meetings

.-The proceedings of each meeting of an Advisory Committee or the Central Advisory Committee shall be circulated to all members present in India, as soon as possible after the meeting, shall be read out and confirmed at the next meeting of the Committee, shall be signed by the Chairman or the Vice-Chairman presiding, as the case may be, and shall thereafter be recorded in a minute book, which shall be kept for permanent record.

18.

Headquarters of an Advisory Committee or the Central Advisory Committee

.-The Headquarters of an Advisory Committee shall be at such place or places as may be fixed by the Central Government and the Headquarters of the Central Advisory Committee shall be in New Delhi.

19.

Executive of an Advisory Committee

-(1) The Commissioner shall be the Chief Executive of an Advisory Committee and exercise the executive functions of the Committee on its behalf.

(2)

The Secretary of an Advisory Committee shall carry out routine duties and shall exercise such powers and discharge such duties as, the Commissioner may, with the approval of the Central Government, delegate to him.

Staff

20.

[* * *]

[Rule 20 omitted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1981 (w.e.f. 12.6.1982).]

21.

Conditions of service of persons appointed under section 8 of the Act

.-Until other provision is made in this behalf, persons appointed under section 8 of the Act shall be governed by such rules relating to the terms and conditions of service of Government servants generally, as may be made applicable, with modification, if any, to such persons by the Central Government.

22.

Schemes of expenditure

-(1) The sanction of the Central Government to the budget shall, if no specific mention is made to the contrary, be deemed to include sanction to expenditure on all approved schemes included in the budget.

(2)

The Commissioner shall have power, subject to the provision in the sanctioned budget, to incur expenditure on administrative staff and welfare schemes:

Provided that-

(i)
he shall have no powers to sanction any scheme, not included in the budget, if it involves expenditure exceeding Rs. 50,000 non-recurring and Rs. 5,000 recurring a year; and

(ii)
any new scheme within these limits shall require the approval of the Finance Sub-Committee before any expenditure on it is incurred.

(3)
The Commissioner may sanction, without reference to the Advisory Committee, expenditure on contingencies, supplies and services and purchases of articles required for the running of the organisation under him subject to financial provision in the sanctioned budget and to the condition that the expenditure on any single object shall not exceed Rs. 2,000 non-recurring and Rs. 400 recurring.

Powers of Advisory Committees

23.

Budget

-(1) The annual budget as prepared by the executive in consultation with the Finance Sub-Committee shall be considered by the Advisory Committee, concerned each year and thereafter a copy of the budget, as approved by the Advisory Committee, shall be forwarded not later than the 1st day of October each year for sanction to the Central Government which may make such alterations therein as it considers necessary before according its sanction.

(2)
The budget to be forwarded to the Central Government shall be accompanied by detailed self-contained notes explaining new schemes included therein.

24.

Other matters to be considered by an Advisory Committee

-(1) An Advisory Committee shall, besides carrying out its statutory duties, consider and advise upon any matter concerning these rules referred to it by the Central Government or State Government for advice.

(2)
An Advisory committee shall also consider the budget and any other matter that may be laid before it by the Commissioner.

25.

Committee to be informed of expenditure

-(1) A memorandum setting forth any grant made or expenditure incurred since the last meeting shall be laid at each meeting of an Advisory Committee.

26.

Finance Sub-Committee

-(1) An Advisory Committee shall elect from among its members two persons of whom one shall be a person representing the owners of the limestone mines or dolomite mines or of both and the other representing the workers of the limestone mines or dolomite mines or of both, to constitute a Finance Sub-Committee of which the Commissioner shall be an additional member and president.

(2)
An Advisory Committee may at any time co-opt a person or persons to the Finance Sub-Committee and any person so co-opted shall exercise all the powers and functions of a member of such sub-committee, but shall not be entitled to vote and shall not solely by reason of being so co-opted by a member of that Advisory Committee.

(3)
Notice of every meeting of the Finance Sub-Committee shall be sent to the Chairman of the Advisory Committee who may attend such meeting if he so desires, and if he does so attend, he shall, notwithstanding anything contained in sub-rule (1), preside and shall be entitled to vote.

27.

Duties of the Finance Sub-Committee

-.The duties of the Finance Sub-Committee shall be to frame schemes of expenditure, to advise on the budget drawn up by the executive of the Advisory Committee and on the accounts of the Advisory Committee and also in regard to all

expenditure and to consider all schemes referred to in proviso (ii) to rule 22.

28.

Other Sub-Committees

.-An Advisory Committee, may, as and when considered necessary, constitute from among its members, as many sub-committees as it may deem necessary for considering and reporting on such matters as may be specifically assigned to it.

29.

Meetings of Sub-Committees

.-The meetings and proceedings of the Finance Sub-Committee and any other sub-committee which may be constituted under rule 28 shall be governed by the provisions herein contained for regulating the meetings and proceedings of an Advisory Committee in so far as the same are applicable.

Chapter III

Grants And Welfare Standards

30.

Grants

.- (1) In each case in which a grant is made by or with the approval of the Central Government to a State Government, a local authority, the owner of a limestone or dolomite mine, or any other person, in aid of any scheme approved by the Central Government for the purposes of the Act, the Central Government may impose conditions necessary for ensurings:-

(a)

that the work for which the grant is made is duly and promptly executed and the money is actually utilised for the purpose for which it is granted;

(b)

that the date on which the grant is calculated are in accordance with facts;

(c)

that any particulars which the Central Government may from time to time require for the proper discharge of its responsibilities are promptly supplied;

(d)

that all necessary facilities for inspection are accorded to persons duly authorised by the Central Government for the purpose of clause (a) or for checking the correctness of any particulars supplied under clause (c) or for the collection of any such particulars;

(e)

that proper accounts of the money granted are kept and are submitted for audit by such persons as the Central Government may authorise in this behalf; and

(f)

that an additional statement of accounts together with a certificate of a Registered Accountant or other recognised body of auditors to the effect that the accounts are correct, is furnished by the granted.

(2)

Before making a grant to a local authority, or the owner of a limestone or dolomite mine or any other person the Central Government shall require such local authority or owner or such person to execute a bond for the fulfilment of conditions imposed by the Central Government under sub-rule (1).

(3)

It shall be the condition of every bond executed under sub-rule (2) that in the event of the local authority or owner of the mine or such person violating any condition imposed under sub-rule (1) such local authority or owner or person shall be liable to pay to the Central Government such sum by way of penalty as may be specified in the bond in addition to the refund of the entire remaining grant-in-aid.

31.

[Standard of dispensary or hospital services

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1981 (w.e.f. 12.6.1982).]

.- (1) The standard of dispensary or hospital services to be provided by owners of limestone or dolomite mines for the purpose of getting the grants-in-aid envisaged under clause (c) of sub-section (2) of section 5 of the Act shall be as

specified in Schedule I and I-A as the case may be (hereafter in this rule and in rules 32 and 33 referred to as the prescribed standard).

(2)

There shall be maintained an independent dispensary or hospital at the site of each limestone or dolomite mine according to the prescribed standard:

Provided that a common main dispensary or hospital may be maintained for several limestone or dolomite mines with branch dispensaries or hospitals attached to each limestone or dolomite mine subject to the following conditions, namely:--

(i)

the common main dispensary or hospital shall maintain the standards prescribed for the aggregate number of workers of all the limestone or dolomite mines served by it or the standard maintained by it during the year 1973 in case of common main dispensary and before the publication of these rules in case of maintenance of hospitals, whichever is higher;

(ii)

every branch dispensary or hospital shall have a qualified doctor and a qualified compounder (Pharmacist);

(iii)

the common main dispensary or hospital shall be so situated that none of the limestone or dolomite mines served by it is more than fifteen kilometres away from it; and

(iv)

the common main dispensary or hospital shall maintain an ambulance van for taking serious cases of injury and sickness from the branch dispensary or hospital to the common main dispensary or hospital.

(3)

The Welfare Commissioner may, if he is satisfied that any dispensary or hospital is being efficiently run and saves the purpose for which it is established, for reasons to be recorded in writing, waive any of the requirement specified in the prescribed standard:

Provided that no such dispensary or hospital shall contain any room other than a store room which is less than four metres by three metres in area:

Provided further that a medical licentiate may be appointed to be in charge of a dispensary or hospital catering to more than 250 workers only if he has ten year's experience as a medical officer in independent charge of a main dispensary.]

32.

[Inspection of dispensary or hospital

[Substituted by G.S.R. 765(E), dated 24.11.2004 (w.e.f. 24.11.2004).]

.-The dispensary or hospital maintained by owners of Limestone or Dolomite Mines shall be inspected annually by the Welfare Commissioner of the region and the Seniormost Medical Officer jointly. They shall, if the dispensary or hospital conforms to the prescribed standard of the dispensaries or hospitals of the Labour Welfare Organisation, as the case may be, issue a certificate in Form A which shall be valid for a period of one year from the date of the issue.]

33.

Submission of periodic returns

.-Every owner of limestone or dolomite mines who maintains a dispensary or hospital service according to prescribed standard shall submit to the Welfare Commissioner-

(i)

in January and July of each year a statement showing the total amount of limestone or dolomite produced in his mine during the preceding six months; and

(ii)

in January of each year a certified statement of expenditure incurred on the dispensary or hospital during the preceding twelve months."

34.

Standard of maternity centre

.- (1) The standard of maternity centre to be provided by owners of limestone or dolomite mines for the purpose of getting the grants-in-aid envisaged in clause (c) of sub-section (2) of section 5 of the Act shall be as specified in Schedule II, hereinafter in this rule and in rules 35, 36 and 37 referred to as the prescribed standards.

(2)

There shall be maintained an independent maternity centre at each limestone or dolomite mine according to the prescribed standard:

Provided that a common main maternity centre may be maintained for several limestone or dolomite mines with branch maternity centres attached to each limestone or dolomite mine subject to the following conditions, namely:--

- (i)
the common main maternity centre shall maintain the standards prescribed for the aggregate number of workers of all the limestone or dolomite mines served by it or the standard maintained by it during the year 1972, whichever is higher;
- (ii)
every branch maternity centre shall have a qualified doctor and a qualified compounder;
- (iii)
the common main maternity centre shall be so situated that none of the limestone or dolomite mines served by it is more than fifteen kilometres away from it; and
- (iv)
the common maternity centre shall maintain an ambulance van for taking serious cases from the branch maternity centres to the common maternity centre.

(3)
The Commissioner may, if he is satisfied that a maternity centre is being efficiently run and serves the purpose for which it is established, waive any of the requirements specified in the prescribed standard:

Provided that the functions of a lady health visitor may be performed by a fully qualified and registered mid-wife who has not less than ten years experience as a mid-wife:

Provided further that a lady medical licenciate may be appointed to be in-charge of a maternity centre catering to more than 1,000 workers if she has ten years experience as a medical officer in independent charge of a mine maternity centre.

35.

[Inspection of maternity centre

[Substituted by G.S.R. 765(E), dated 24.11.2004 (w.e.f. 24.11.2004).]

.-The maternity centre maintained by owners of Limestone or Dolomite Mines shall be inspected annually by the Welfare Commissioner of the region and the Seniormost Medical Officer jointly. They shall, if the maternity centre conforms to the prescribed standard of the maternity centre of the Labour Welfare Organisation, issue a certificate in Form B which shall be valid for a period of one year from the date of the issue.]

36.

Submission of periodic returns

.-Every owner of a limestone or dolomite mine who maintains a maternity centre according to the prescribed standard shall submit to the Commissioner in January of each year a certified statement of the expenditure incurred on the maternity centre during the preceding twelve months.

37.

[Extent of grant-in-aid

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1981 (w.e.f. 12.6.1982).]

.- (1) Every owner of a Limestone or Dolomite Mine who maintains a dispensary, hospital or a maternity centre for the benefit of labour employed in his mine which conforms to the prescribed standard under rule 31 or 34, as the case may be, and is subject to inspection under rule 32 or 35, as the case may be, shall, if he desires to carryon improvement of the] [existing facilities]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1987 (w.e.f. 28.3.1987).]

[, in case of dispensary and maternity centre, and before the publication of Limestone and Dolomite Mines labour Welfare Fund (Amendment) Rules, 1981, in case of hospital be eligible for grant-in-aid in respect of non-recurring expenditure on such improvement as the Central Government may decide, subject to the condition that it shall not exceed 50 per cent of the said expenditure.

(2)

Every owner of Limestone or Dolomite Mine who maintains a dispensary, hospital or maternity centre for the benefit of the labour employed in his mine shall, if the Welfare Commissioner is of the opinion that the dispensary, hospital or maternity centre conforms to the prescribed standard, be eligible to a grant-in-aid which shall not exceed--

(i)

the amount of duty at the rate of] [forty paise]

[Substituted by G.S.R. 765(E), dated 24.11.2004, for " twenty paise" (w.e.f. 24.11.2004).]

[per metric tonne of Limestone or Dolomite, as the case may be, produced by the mine less the proportionate cost of recovery; or

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1981 (w.e.f. 12.6.1982).]

(ii)

75 per cent. of amount spent by the owner of the mine on the maintenance of the dispensary, hospital or maternity centre as determined by the Welfare Commissioner, whichever is less:

Provided that in the case of a dispensary, hospital or maternity centre which serves other workers and the members of the public, the amount spent by the owner of the mine on the maintenance of the dispensary, hospital or maternity centre services for the purpose of this clause may, if separate expenditure figures are not available, be determined by the Chairman on proportionate basis.]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1981 (w.e.f. 12.6.1982).]

38.

Standard of facilities for education and recreation

.(1) The standard of facilities for education and recreation of workers to be provided by owners of limestone or dolomite mines for the purpose of getting grants-in-aid as envisaged in clause (c) of sub-section (2) of section 5 of the Act shall be as specified in Schedule III, hereinafter in this rule and in rules 39 and 40 referred to as the prescribed standard.

(2)

There shall be maintained an independent welfare centre at each limestone or dolomite mine according to the prescribed standard.

(3)

The Commissioner may, if he is satisfied that the centre is being efficiently maintained and serves the purpose for which it is established, waive any of the requirements specified in the prescribed standard.

39.

[Inspection

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1983 (w.e.f. 2.7.1983).]

.-The welfare centre maintained by owners of limestone and dolomite mines shall be inspected at intervals not exceeding one year by such officer as may be authorised by the Commissioner for the purpose or by the Commissioner himself whenever he considers it necessary and the inspecting officer or the Commissioner, as the case may be, shall issue a certificate in Form "C", indicating whether the centre conforms to the prescribed standard or not, which shall be valid for a period of one year from the date of issue.]

40.

Submission of periodic returns

.-Every owner of a limestone or dolomite mine who maintains a welfare centre according to the prescribed standard shall submit to the Commissioner--

(i)

immediately on the establishment of the welfare centre, adequate proof to the satisfaction of the Commissioner showing the capital expenditure incurred on the construction and equipment of the welfare centre; and

(ii)

in January each year a certified statement of the expenditure incurred on the welfare centre during the preceding twelve months:

Provided that the statement shall not include expenditure, if any, incurred on repairs and replacements.

41.

Extent of grant-in-aid

.-Every owner of a limestone or a dolomite mine who maintains a welfare centre for the benefit of the labour employed in his mine which conforms to the prescribed standard under rule 38 and subject to inspection under rule 39 be eligible to grant-in-aid which shall not exceed 50 per cent. of the amount spent by the owner of the mine in the construction and equipment of the welfare centre subject to a maximum of Rs. [15,000] [[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund

(Amendment)

Rules, 1983 (w.e.f. 2.7.1983).]]

Chapter IV

Assessment And Recovery

42.

Assessing and collecting authority for duty of excise

.-The Commissioner shall be responsible for the assessment and collection of the cess levied under the Act.

43.

Maintenance of registers

.-(1)(a) Every owner of a limestone or dolomite mine shall maintain in Form D a date-wise register of production and disposal of limestone or dolomite.

(b)

at the close of each month, the entries made against each date in the register shall be totalled and the total production and disposal during the month shall be entered therein.

(c)

The duty of excise, as fixed under section 3, payable by the owner of the mine to the Central Government on the limestone or dolomite used by such owner for any purpose in connection with the manufacture of cement, iron or steel shall be worked out and recorded in the register itself.

Explanation .-In calculating the duty of excise payable, a fraction of less than half a tonne in the total of limestone or dolomite used during the month shall be ignored and a fraction of half or more than half of a tonne shall be reckoned as one tonne.

[(1-A)(a) Every purchasing agent or stockist of limestone or dolomite shall maintain in Form D-1 a date-wise register of the receipts and disposal of limestone or dolomite.

(b)

At the close of each month the entries made against each date in the register shall be totalled and the total receipt and disposal during the month shall be entered therein.

(c)

The duty of excise as fixed under section 3 payable by the purchasing agent or the stockist under section 4 in relation to such limestone or dolomite to the occupier of factory shall be calculated and recorded in the register itself alongwith the amount of duty actually paid.

Explanation .-In calculating the duty of excise payable, a fraction of less than half a tonne in total of limestone or dolomite sold or otherwise disposed of to the occupier of any factory during the month shall be ignored and a fraction of half or more than half a tonne shall be reckoned as one tonne.]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

(2)

(a)

Every occupier of a factory receiving limestone or dolomite shall maintain in Form E a date-wise register of receipt of limestone or dolomite and the amount of duty of excise collected under clause (a) of sub-section (1) of section 4, in the manner specified in sub-rule (4) of rule 47.

(b)

At the close of each month, the entries made against each date in the register shall be totalled and the total quantity of limestone or dolomite and amount of duty of excise collected during the month shall be entered therein.

44.

Submission of returns

.-(1) Every owner of a limestone or dolomite mine [purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

and every occupier of a factory receiving limestone or dolomite shall submit to the Commissioner, in duplicate, a return in Form D [Form D-1]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f.

13.8.1983).]

and Form E, respectively for each month in accordance with the entries made in the register maintained under sub-rule (1) [or sub-rule (1-A)]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or sub-rule (2) of rule 43, as the case may be, duly signed by him or any other person authorised by him in this behalf, so as to reach the Commissioner not later than the last day of the month following the month to which the return pertains.

(2)

If by reason of the fact that no limestone or dolomite was produced or disposed of in any manner by the owner of a mine, [or no limestone or dolomite was received or sold or otherwise disposed of in any manner by the purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or like-wise no limestone or dolomite was received or no duty of excise collected by the occupier of the factory, during any month, such owner [purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or the occupier as the case may be, shall submit to the Commissioner, in duplicate, a nil return for that month, accompanied by a certificate to the effect duly signed by him or any other person duly authorised by him in this behalf, so as to reach the Commissioner not later than the last day of the month following the month to which the return pertains.

(3)

Notwithstanding anything contained in sub-rule (1) or sub-rule (2), if the Commissioner is satisfied with respect to the owner of any mine that no limestone or dolomite was produced or disposed of by him [or with respect to the purchasing agent or stockist of limestone or dolomite that no limestone or dolomite was received or disposed of by him]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or with respect to the occupier of any factory that no limestone or dolomite or duty of excise was received by him, during the preceding twelve months, he may by a permit in writing allow such owner [or purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or occupier to submit in place of monthly return in Form D [or Form D-1]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or Form E, as the case may be, for such period not exceeding one year as may be specified in the permit and the consolidated return so submitted shall reach the Commissioner not later than the last day of the month immediately following the period specified in the permit.

(4)

A return under sub-rule (1), (2) or (3) shall be sent by registered post with acknowledgment due.

45.

Penalty for delay in submission of returns

.-If the return for any month or period does not reach the Commissioner within the time specified in rule 44, the owner of the limestone or dolomite mine [or purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or the occupier of the factory, as the case may be, shall be punishable with fine which may extend to five hundred rupees.

46.

Late returns and revision of returns

.-If the owner of any mine [or purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or the occupier of any factory has not furnished the return under rule 44 within the specified date or having furnished it, discovers any omission or wrong statement therein, he may furnish the return or revised return, as the case may be, at any time before the order of final assessment under rule 49 or 50, as the case may be, is passed.

47.

Provisional assessment and payment of duty of excise

-(1) The amount of duty of excise payable by the owner of a mine for any month and recorded in the register specified in sub-rule (1) of rule 43 shall be deemed to be a provisional assessment of the duty of excise for that month and shall be subject to final assessment under rule 49.

(2)

The owner of the mine shall pay the duty of excise assessed under sub-rule (1) [by sending to the Commissioner crossed cheque or crossed demand draft drawn in his favour and payable at the station at which the Commissioner is stationed]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).] not later than the last day of the month following the month for which the duty of excise is payable.

(3)

The duty of excise on the limestone or dolomite, as fixed under section 3, payable to the occupier of a factory, by the person by whom such limestone or dolomite is sold or otherwise disposed of to such occupier, shall be worked out by the said occupier and shall be deemed to be a provisional assessment of the duty of excise and shall be subject to a final assessment under rule 50.

Explanation .-In calculating the duty of excise payable, a fraction of less than half a tonne in the total of the limestone or dolomite sold or otherwise disposed of to the occupier of any factory at a time shall be ignored and a fraction of half or more than half of a tonne shall be reckoned as one tonne.

(4)

The amount so worked out shall be deducted by the said occupier from the bill of payment of the person concerned, unless already paid by him to such occupier in cash or by bank draft, and the fact shall be intimated forthwith by the said occupier to the person concerned in Form F, a copy of which shall also be endorsed to the Commissioner and despatched to him by registered post, acknowledgment due.

(5)

The amount received or collected by the occupier of any factory under sub-rule (4) shall be paid by him [by sending to the Commissioner crossed cheque or crossed demand draft drawn in his favour and payable at the station of which the Commissioner is stationed]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).] not later than the last day of the month following the month for which the duty of excise is payable.

48.

[Manner of payment of duty]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1990 (w.e.f. 29.9.1990).]

-(1) The payment of the duty of excise by the owner of a mine under sub-rule (2) of rule 47, or of the amount collected by the occupier of any factory under sub-rule (4) of rule 47, shall be made by sending to the Commissioner a crossed cheque or crossed demand draft drawn in his favour and payable at the station at which he is stationed along with a treasury challan duly filled in indicating the head of Account as "0038-Union Excise duties-Cess on Commodities-Limestone and Dolomite Cess" creditable to the account of P.A.O. (Main Secretariat), Ministry of Labour, New Delhi.

(2)

The cheque or bank draft shall be credited by the Commissioner in favour of the P.A.O. (Main Secretariat), Ministry of Labour, New Delhi, in the branch of the accredited bank of the Ministry of Labour, New Delhi with which the Commissioner has been placed in account.]

49.

Final assessment of duty of excise payable by owner of a mine

-(1)(a) If the Commissioner is satisfied that the return submitted by any owner of a mine is correct and complete, he

shall confirm the provisional assessment referred to in sub-rule (1) of rule 47 as final and send an intimation to that effect to the owner of the mine in Form G within ninety days of the date of receipt of the return.

(b)

If the Commissioner is not so satisfied or no return is filed by the owner of a mine, he may issue a notice in Form H on the owner of the mine requiring him to submit a return or a revised return in Form D, as the case may be, within such time as may be specified in the notice and he may also depute an officer for the purpose of verification of the correctness and completeness of the return submitted under rule 44 with reference to the books and accounts and other relevant records of the mine at its premises.

(c)

The officer deputed by the Commissioner shall be afforded all necessary facilities at the premises of the mine for the purpose of verification.

(d)

If on consideration of the return or the revised return received in compliance of the notice in Form H or after verification of the return as aforesaid, or if no such return is received within the specified time, on the basis of the information in his possession, the Commissioner is satisfied that any amount on account of duty of excise is due from the owner of the mine, he shall issue on him a Demand Notice in Form I requiring him the payment of the amount due within the time specified therein and the owner shall further be punishable with fine which may extend to five hundred rupees as provided in rule 45, for non-submission of the return in Form D.

(2)

[The mode of payment of the amount specified in Demand Notice in Form I shall be the same as laid down in rule 48 and the crossed cheque or crossed demand draft sent to the Commissioner shall be accompanied by a covering letter quoting reference to the Demand Notice.]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]

50.

Final assessment of duty of excise payable by persons selling or otherwise disposing limestone or dolomite to the occupier of any factory

..--(1)(a) If the Commissioner is satisfied that the amount of duty of excise received or collected by the occupier of the factory from the person by whom the limestone or dolomite is sold or otherwise disposed of to such occupier, is the total amount of the duty of excise payable by him as fixed under section 3, he shall confirm the provisional assessment referred to in rule (3) of rule 47 as final and send an intimation to that effect to the said occupier in Form J within ninety days of the receipt of the intimation in Form F.

(b)

If the Commissioner is not so satisfied or no return in Form E is filed or information in Form F for any month furnished by the occupier of any factory by the specified date in the manner laid down in rules 44 and 47, the Commissioner may issue a notice in Form K on the occupier of the factory concerned requiring him to submit a return or revised return in Form E, or information or revised information in Form F, or both, as the case may be, within such time as may be specified in the notice and he may also depute an officer for the purpose of verification of the correctness and completeness of the return or the information furnished by the occupier concerned in Form F, with reference to the books and accounts and other relevant records of the factory at its premises.

(c)

The officer deputed by the Commissioner shall be afforded all necessary facilities at the premises of the factory for the purpose of verification.

(d)

If no consideration of the return or revised return, or information or revised information or both, received in compliance of the notice in Form K or after verification of the return or information, or both, as aforesaid, or if no such return or revised return, or information or revised information, or both, is or ore received within the specified time, on the basis of the information in his possession, the Commissioner is satisfied that any amount on account of duty of excise is due from the occupier of the factory, he shall issue on him a demand notice in Form L requiring him the payment of the amount within the time specified therein and the occupier of the factory shall further be punishable with fine which may extend to five hundred rupees as provided in rule 45 for non-submission of the return in Form E or information in Form F.

(2)

[The mode of payment of amount specified in Demand Notice in Form L shall be the same as laid down in rule 48 and the crossed cheque or crossed demand draft sent to the Commissioner shall be accompanied by a covering letter quoting reference to the Demand Notice.]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]
51.

Penalty for non-payment of duty of excise

.-The penalty under section 12 be imposed by the Commissioner after giving notice to the defaulter in Form M and the Demand Notice shall be issued in Form N.

52.

Recovery of duty of excise on limestone or dolomite which has escaped assessment

.-If--

(a)

the Commissioner has reason to believe that by reason of the concealment, by the owner of a mine [or purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or by the occupier of any factory, of any particulars of any limestone or dolomite on which duty of excise is payable under section 4 of the Act, has escaped the levy of duty of excise; or

(b)

notwithstanding any such concealment of particulars as is mentioned in clause (a), the Commissioner has in consequence of information in his possession, reason to believe that any limestone or dolomite on which duty of excise is payable has escaped levy of the duty of excise, the Commissioner may, in cases falling under clause (a), at any time within four years, and in cases falling under clause (b), at any time within two years of the end of the month during which the duty of excise should have been paid, assess the duty of excise payable thereon and all the provisions of these rules shall apply to the duty of excise so assessed as if assessment were included in the final assessment order as provided under rule 49 or rule 50 as the case may be:

Provided that the Commissioner, before exercising the powers conferred upon him under this rule, shall give the owner [or purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or the occupier, as the case may be, a reasonable opportunity of being heard.

53.

Recovery of unpaid duty of excise and penalty

.-(1) The Commissioner shall (in order to recover the unpaid amount of the duty of excise, interest and the penalty) apply to the Collector of the district in which the mine or the factory is situated, as the case may be, for the recovery of the amount remaining unpaid as arrears of land revenue under section 13.

(2)

The Collector of the district shall send a report to the Commissioner by the 10th day of each month showing the amount recovered by him as arrears of land revenue during the preceding month.

54.

Review

.-(1) Within 30 day from the date of issue of a Demand Notice, any owner of the mine [or purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or any occupier of a factory, as the case may be, may submit a petition to the Central Government with a copy to the Commissioner, asking for a review of such assessment or orders under section 11 or section 12:

Provided that no such petition shall be entertained unless the Central Government is satisfied that the amount demanded has been paid as required under rule 49 or rule 50, as the case may be.

(2)

Every petition for review shall be accompanied by a memorandum setting forth clearly the principal grounds of objection against the assessment made [quoting the number and date of crossed cheque or crossed demand draft and number and date of letter with which it was forwarded to the Commissioner]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]

showing that the amount assessed has been paid.

(3)

The Central Government shall after making such enquiry as necessary pass such order in writing as it thinks fit, which shall be final.

(4)

The petitioner shall be entitled to a copy of such order on the petition for review free of cost and it shall be furnished to him as soon as possible after the orders are passed.

(5)

So much of the amount originally demanded and paid by the owner of the mine or the occupier of the factory, as the case may be, as is found not to be due from him as a result of review under sub-rule (1) shall be refunded to the petitioner.

(6)

[Any refund under sub-rule (5) shall be made by the Commissioner by cheque or demand draft by drawing the amount from the Pay and Accounts Office on an ordinary contingent bill on which shall be specified the review case number and date of the order therein and the amount and date of the challan with which the deposit was made by him in the branch of the]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]

[accredited bank of the Ministry of Labour, New Delhi]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1990 (w.e.f. 29.9.1990).]

55.

Records of collection

-(1) For the proper accounting of duty collected under these rules, the Commissioner shall maintain records to show the following particulars along with any other particulars required, namely:--

(a)

assessment and collection of duty;

(b)

interest payable under section 11;

(c)

penalty imposed for non-payment of duty under section 12;

(d)

particulars of petitions and orders thereon; and

(e)

refunds.

(2)

All the papers relating to the assessment of duty in respect of a mine or factory shall be kept together and shall form an assessment case record.

56.

Liability of owner of mine selling or otherwise disposing of limestone or dolomite to the occupier of a factory

.-In these rules, the reference to the person by whom limestone or dolomite is sold or otherwise disposed of to the occupier of the factory shall be construed to mean reference to the owner of a mine where such owner happens to be the person selling or otherwise disposing of limestone or dolomite produced in the mine to the occupier of the factory and shall be liable as such.

Chapter V

Miscellaneous

57.

Maintenance of the accounts

-(1) The amount of the cess collected under the Act shall be credited to Major Head [[0038]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]

[Union Excise Duties-Cess on Commodities-Limestone and Dolomite]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]

.

(2)

The proceeds of the cess, reduced by the cost of collection as may be determined by the Central Government, shall, after due appropriation made by Parliament by law, be transferred to Limestone and Dolomite Mines Labour Welfare Fund in Section J:-(a) Reserve Funds; (b) Reserve Funds not bearing interest under the Major Head 8229-Development and Welfare Funds-Mines Welfare Funds in the Public Account of the Central Government for expenditure on measures for the welfare of labour employed in the limestone and dolomite mining industry.

(3)

The miscellaneous receipts accruing from the investment of the amount in the Fund and other moneys received in connection with the measures for the welfare of the labour employed in the limestone and dolomite mining industry shall be credited in the first instance to the Head [B-Non-Tax Revenue (C) Other Non-Tax Revenue-(ii) Social and Community Services-]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]
[0230]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1990 (w.e.f. 29.9.1990).]
[-Labour and Employment-Receipts under Labour Laws]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26.8.1978).]
and subsequently transferred, after due appropriation made by Parliament by law, to the Reserve Fund referred to in sub-rule (2).

58.

Allocation

.-The proceeds of the cess transferred to the Limestone and Dolomite Mines Labour Welfare Fund every year and such other moneys as may be received in the Fund shall be distributed by the Central Government for expenditure in limestone and dolomite producing areas in proportion to their production or in such manner as may be decided in consultation with the Government of those areas.

59.

Statistics and other information

.-(1) The owner of a limestone or dolomite mine or purchasing agent or stockist and the occupier of any factory shall furnish such statistics or other information as the Central Government or any other person authorised by the Central Government in writing in this behalf, may by written order, require for the purposes of the Act in such form or manner and within such time as may be specified in the order.

(2)

Any owner of a limestone or dolomite mine [or purchasing agent or stockist]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13.8.1983).]

or the occupier of a factory who, without reasonable excuse, fails to furnish the statistics or other information required under sub-rule (1) or furnishes statistics or other information containing a statement, entry or detail which is not to the best of his knowledge or belief true, shall be punishable with fine which may extend to Rs. 500.

60.

Prosecution

.-No Court shall take cognizance of any offence punishable under rule 45, sub-clause (d) of sub-rule (1) of rule 49, sub-clause (d) of sub-rule (1) of rule 50, and rule 59 save on a written complaint made by or under the authority of the Commissioner.

[Schedule I]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1981 (w.e.f. 12-6-1982).]

(See rule 31)

Standard Of Dispensary Services

I. Building

1. Dispensary catering for 1,000 workers or less-Three rooms to be used as follows :

(i) Consulting room

(5 metres x 4 metres)

(ii) Dressing room

(5 metres x 4 metres)

(iii) Dispensary and store room

(5 metres x 4 metres)

Covered waiting accommodation 15 square metres, two latrines (flush type) each 2 metres x 3 metres.

2. Dispensary catering for 1,001 to 2,000 workers-Six rooms to be used as follows :-

(i) Consulting room for males

(5 metres x 4 metres)

(ii) Consulting room for females

(5 metres x 4 metres)

(iii) Minor Operation room

(5 metres x 4 metres)

(iv) Dispensary room

(5 metres x 4 metres)

(v) Laboratory room

(15 to 18 square metres)

(vi) Store room

(5 metres x 4 metres)

Covered waiting accommodation-20 square metres, two latrines (flush type) each 2 metres x 3 metres.

3. Dispensary catering for 2,001 workers or more-Nine rooms to be used as follows :-

(i) Consulting room for males

(5 metres x 4 metres)

(ii) Consulting room for females

(5 metres x 4 metres)

(iii) Minor Operation room

(5 metres x 4 metres)

(iv) Dispensary room

(5 metres x 4 metres)

(v) Laboratory room

(15 to 18 square metres)

(vi) Dressing room

(3 metres x 4 metres)

(vii) Dark room

(3 metres x 3 metres)

(viii) Registration and Record office room

(15 square metres)

(ix) Store room

(5 metres x 4 metres)

Covered waiting accommodation-25 square metres, three latrines (flush type) each 2 metres x 3 metres.

Each dispensary shall provide emergency beds for treatment of simple and emergency cases at the rate of one bed for every 250 workers subject to a minimum of two beds, one for males and one for females. For this purpose separate rooms shall be provided for males and females. The rooms shall have air space of 18 cubic metres per bed and door and window space not less than one-third of the floor space with verandah 2.5 metres wide along the front of the rooms.

II. Staff

1. Dispensary catering for 250 workers or less:

Medical Licentiate or Graduate

1

(whole-time)

Auxiliary Nurse-Midwife

1

(whole-time)

Compounder-cum-Dresser

1

(whole-time)

Sweeper

1

(whole-time)

2. Dispensary catering for 251 to 500 workers:

Medical Graduate

1

(whole-time)

Auxiliary Nurse-Midwife

1

(whole-time)

Compounder-cum-Dresser

1

(whole-time)

Sweeper

1

(whole-time)

3. Dispensary catering for 501 to 1,000 workers:

Medical Graduate

1

Auxiliary Nurse-Midwife

1

Compounder-cum-Dresser

1

Sweeper

1

(whole-time)

Attendants

2

Cook

1

4. Dispensary catering for 1,001 to 2,000 workers:

Medical Graduate

1

Compounder

1

Dresser

1

Auxiliary Nurse-Midwife

1

(whole-time)

Sweepers

2

Attendants

3

Cook

1

5. Dispensary catering for 2,001 workers or more:

Medical Graduate

1

Medical Licentiate or Graduate

1

Compounder

1

Dresser

2

Auxiliary Nurse-Midwife

1

(whole-time)

Nurse

1

Sweepers

2

Attendants

4

Cooks

2

III. List Of Drugs, Surgical Equipments, Dressings, Etc., For Dispensary

A. Drugs

1. Acid Acetic

2. Acid Boric

3. Acid Carbolic

4. Acid Salicylic

5. Aqua Distillate

6. Ammon Carbonate

7. Aspirin

8. Benedict's solution

9. Ephedrine Hydrochloride (1/2 gm. tab.)

10. Ether

11. Extract Clyerr, Liq.

12. Ferri sulph tablets Fersolate

13. Glucose powder and injection

14. Glycerine

15. Gum acacia

16. Kaoline

17. Liq. Ammon Acetate

18. Lysol or Dettol or Savlon

19. Mag. oxide powder or mag. Trisillicate

20. Mag. Sulph

21. Multi vitamin tab.

22. Glaxena

23. Oil Menth pip.

24. Paludrine tab.

25. Phenobarbitone tab.

26. Pot. Iodide

27. Pot. Bromide

28. Pot. Permanganate

29. Sodi. bicarbonate

30. Sodi. Salicylate

31. Spt. ammon aromat.

32. Spt. methylated

33. Spt. rectified
34. Sulphanilamide or sulphadiazine tablets
35. Sulphaguanidine tablet
36. Sulphanilamide powder
37. Tab. Digoxin/Pill Digitalis Co. B.P.C.
38. Tinct. Belladonna
39. Tinct. Benzoin Co.
40. Tinct. Opii camphorate
41. Tinct. Card Co.
42. Tinct. Hyoscyamus
43. Tinct. Iodine
44. Vaseline
45. Zinc Oxide
46. Cora mine or Nikethmide
47. Emetine Hydrochlor (amp. 30 mg., 60 mg.)
48. Perocaine (Hydrochlor or Novocain 2% amp.)
49. Serum Tatanus anti toxin 1,500 units
50. Tab. Atropine (1/100 gr.)
51. Tab. Morphine (60 mg.)
52. Penicillin (1,00,000 ampoules or 4,00,000 unit amps.)
53. Streptomycin (1 gm. amp.)
54. PAS (Paramine cydealic acid) (Bigger dispensary)
55. Inj. Adrenalin Hydrochloride
56. Pot. Citrate
57. Isonicotinic Acid Hydrazide 100 mg. tab.
58. Dextrose and sodium chloride injections U.S.R. in transfusion bottles.
59. Distilled water ampoules
60. Liquid paraffin
61.
Tetanus toxide
62.
Inj. Spasmindon
63.
Inj. Methergin
64.
Inj. Novalgin
65.
Lethidrone (bigger dispensary)
66.
Inj. Siquil.
67.
Inj. Pethdine Md.
68.
Inj. Phenergan
69.
Inj. Largactil
70.
Inj. Mephentine sulphate
71.
Inj. Decadron
- 72.

Inj. Avil

73.

Gardenal Sodium (Bigger dispensary)

74.

Inj. Calcium gluconate

75.

Inj. Clouden

76.

Inj. Serpasil

77.

Inj. Aminephollin 10 ml.

78.

Inj. Vit K.

79.

Inj. Vit B, C & B12.

80.

Inj. B. Complex (bigger dispensary)

81.

Inj. Paraldehyde ampoule of 5 ml.

82.

Tab.

83.

Liver Cetrac (bigger dispensary)

84.

Inj. Cedilanid -do

85.

Inj. Streptopenicillin

86.

Inj. Lasiz (bigger dispensary)

87.

Inj. Proluton Depot -do

88.

Tab. B. Complex -do

89.

Tab. cal gluconate

90.

Tab. vit. C (ascorbic acid).

91.

Tab. Esidrex

92.

Tab. Antacid

93.

Tab. prednistone

94.

Piperazine citrate.

95.

Chlorampehnical cap. (125 mg. & 250 mg.)

96.

Cap. Tetracyclin Hc. 250 mg.

97.

Tab. Avil

98.
Tab. Sequill (bigger dispensary)
99.
Tab. Phenylbutazone
100.
Tab. Serpasil
101.
Tab. Asmapax depot.
102.
Tab. Sorbitrate (bigger dispensary)
103.
Terramycin eye joint.
104.
Syrup Tolum
105.
Syrup Vasaca
106.
Liquorice Liquid extract
107.
Merbromin powder
108.
Alcohol (spirit)
109.
Tab. Aspirin
110.
Shark liver oil
111.
Tab. methergin (bigger dispensary)
112.
Hydrogen Peroxide -do
113.
Lobelia tincture
114.
Orange tincture
115.
Sodium citrate
116.
Paracetamol tablets [for patients sensitive with ulcer where Aspirin is contra-indicated (bigger dispensary)]
117.
Paracetamol syrup (for children) (bigger dispensary)
118.
Mexoform tablets-Entroquinol-Entrovioform
119.
Oxyphembutazone tables (Tendril) (bigger dispensary)
120.
Antidiarrhoea suspension (children)
121.
Multivitamin drops (children)
122.
L.T.P. Vaginal tablets
- 123.

Flagyl'tablets

124.

Equinil tablets

125.

Tinct. Zingiheres

126.

Tab. Chloroquin Phosphate (Nivaquin)

127.

Tab. Heirazan

List of Prepared Mixtures

1. Expectorant

2. Alkaline

3. Antacid

4. Carminative

5. Anti-Asthmatic

6. Bismuth-Kaoline

7. Diaphorlatic

8. Sodium Salicylate

9. Potassium Iodide

10. Potassium Citrate

11. Alba

Prepared Ointments

1. Enteroquinol

2. Salicylic Acid

3. Boric Acid

4. Zinc Oxide

Prepared Lotion

1. Eye drop

2. Ear drop

3. Calamine lotion

4. Jention violet

5. Mercurochrome

6. Nasal drops

7. Liniment turpentine

Note. - The actual quantities of the above mentioned items to be stocked shall be such as are found necessary in the light of day-to-day working of the dispensaries: provided that provision for drugs shall be made at each dispensary at least at the rate of 50 paise per annum per worker attached to the dispensary.

B. DRESSING

Number

250 workers or below

251-1,000 workers

1. Bandage, roller 15 cm.

6

6

2. Bandage, roller 10 cm.

6

6

3. Bandage, roller 8 cm.

6

6

4. Bandage Triangular

6
6
5. Cotton wool
450 gms.
450 gms.
6. Gauge meter each
6
12
7. Lint
100 gms.
100 gms.
8. Plaster of Paris bandage 10 cm.
-
6
9. Plaster of Paris bandage 8 cm.
-
6
10. Strapping adhesive 12 roller
1
1
11. Strapping adhesive 2 roller
1
1
12. Strapping adhesive 3 roller
1
1
13. Burn Dressing
6
12
C. MEDICAL AND SURGICAL EQUIPMENTS
1. Basin 35 cm.
1
1
2. Bowls E. 3.5 cm.
1
1
3. Bowls E. 4.5 cm.
1
1
4. Catheter rubber (size 8 & 10)
2
2
5. Cup feeding
1
2
6. Douche can with fittings
-
1
7. Drums dressing
1
1

8. Examination lamp

1

1

9. Forceps artery

2

2

10. Forceps Cheatle

1

1

11. Forceps dissecting toothed

-

1

12. Forceps dissecting plain

1

1

13. Hammer percussion

1

1

14. Jug measures

1

1

15. Lancet vaccination

-

1

16. Mirror forehead

-

1

17. Needle aneurysm

18. Needle suture assorted

6

6

19. Probe

1

2

20. Razor Safety

1

1

21. Rogerscholera apparatus or apparatus intravenous

1

1

22. Stethoscope

1

1

23. Syringes 2 cc.

1

1

24. Syringes 10 c.c.

1

1

25. Syringes 20 c.c. or above

-

1

26. Sphygmomanometer

-

1

27. Speculum nasal

1

1

28. Speculum aural

1 set

1 set

29. Stone primus

1

1

30. Scaples

1

2

31. Skinner mask

-

1

32. Stretcher

1

1

33. Syringes ear

-

1

34. Spud eye

-

1

35. Splint leg Thomas (medium)

-

1

36. Splinting wire crammer

-

1

37. Scissors straight Mayo

-

1

38. Scissors straight both ends sharp

-

1

39. Sterilizer instrument portable

-

1

40. Thermometers

1

2

41. Tongue depressor

1

1

42. Tape measure

1

1

43. Test type chart

1

1

44. Tray dressing

1

2

45. Tray kidney

1

2

46. Tourniquet

1

1

47. Undine

1

1

48. Weighing machine

1

1

49. Water proof sheets of 2 metres

1

1

50. Autoclave

1

1

51. Stomach tube

1

1

52. Mouth gag

1

1

53. Cat gut (assorted numbers)

6 tubes

12 tubes

54. Silk worm gut or nylon thread

5 metres

6 metres

55. Sets of wooden splints (4', 1/2,

3', 1', 6")

1 set

2 set

56. Lifter

1

1

57. Enamel bucket

1

1

58. Stainless steel dekchi 12" with cover

1

2

59. Wooden board 7' x 1/2 x1"

1

1

60. Torch with spare cells

1

1

61. Stretcher

2

2

62. Eye cups

1

1

63. Refrigerator

1

1

64. Microscope

1

1

I-A

Standard Of Hospital Services

(See rule 31)

50. Bed-Hospital

I. Distribution Of Beds

(i) Medicine

25

(ii) Surgery

15

(iii) Obstetrics and Gynecology

10

II. Provision Of Specialities

Being a small hospital having only 50 beds it need not be burdened with all specialities and should confine its activities to basic requirements. The following basic specialities need only be provided, namely. Medicine, Surgery and Obstetrics and Gynaecology. Orthopedic cases may normally be seen by General Surgeon and similarly pediatrics cases may normally be seen by Medical Specialist. To meet the needs of the beneficiaries in other specialities, arrangements should be made to refer cases to nearest Government Hospital and arrangement of the transport of such patient should be made.

III. Provision Of Other Facilities

1. Casualty

2. Laboratory

3. X-Ray

4. One Operation Theatre

5. One Labour Room (near the Gynae. Ward)

6. E.C.G.

7. Central Sterilisation

8. Kitchen

9. Central Stores

10. Recreation facilities for patients.

11. Small incinerator

12. Dhobi Ghat/Local arrangement for washing, if possible.

13. Mortuary.

IV. Requirement Of Specialists, Medical And Other Staff

(i)

Specialists

(1) Medicine

1

(2) Surgery

1

(3) Obstetrics & Gynecology

1

Normally senior most Specialist should hold the charge of Medical Superintendent in addition to his own duties.

(ii)

Medical Officers

General Duty Medical Officers for various departments

(iii)

Administration

1. Cashier

1

2. UDC

1

3. LDC

2

(iv)

Para-Medical/nursing Staff

1. Asstt.

Matron

1

2. Sister-in-charge

2

3. Staff nurses

13

(i) for Wards

10

(ii) for O.T./O.P.D./labour rooms home sister and reliefs

3

4. Lab. Technician

1

5. Radiographer

1

6. Pharmacist

2

(one for store)

7. Steward

8. O.T. Assistant

9. Messenger

1[(included in total strength of Class IV staff)

V. Other Staff

1. Cook

1

2. Cook Mate

1

3. Class IV (including Chowkidar & Messenger)

30

4. Part-time

Barber

1

Tailor

1

100. Bed-Hospital

1. Distribution Of Beds

(i) Medicine

30

(ii) Surgery

15

(iii) Obstetric

& Gynecology

16

(iv) Pediatrics

19

(v) Orthopedic

10

(vi) Pooled beds for other specialties

14

II. Provision Of Specialities

The following specialities may be provided

(i)

Medicine

(ii)

Surgery

(iii)

Obstetric & Gynaecology

(iv)

Orthopaedic

(v)

Anaesthesia

As no Specialists in Paediatrics is proposed, these cases will be seen by Specialist in Medicine. To meet the needs of the beneficiaries in other specialities, arrangements should be made to refer cases to nearest Government Hospital and arrangement of transport of such patient should be made.

III. Provision Of Other Facilities

1. Casualty

2. Laboratory

3. X-Ray

4. Two Operation Theatres (One septic & one aseptic)

5. One Labour Room

6. E.C.G.

7. Central Sterilisation

8. Physiotherapy

9. Kitchen

10. Central Stores

11. Recreation facilities for patients

12. Small incinerator

13. Dhobi Ghat/Local arrangement for washing, if possible

14. Medical Records Section

15. Mortuary.

IV. Requirement Of Specialist, Medical And Other Staff

(I)

Specialists

1. Medicine

1

2. Surgery

1

3. Obst. & Gynecology

1

4. Orthopedic

1

5. Anaesthesia

1

Normally the senior-most Specialist should hold the charge of Medical Superintendent in addition to his own duties

(II)

JUNIOR SPECIALISTS

1. Pathology

1

2. Radiology

1

(III)

Medical Officers

1. General Duty Medical Officers

7

(IV)

Administration

1. Office Superintendent/Lay Secretary (Non-medical)

(Non-Gazetted)

2. Head Clerk

3. Cashier

1

4. Stenographer

1

5. U.D.C.

1

6. L.D.C. including Registration-1

2

7. Messengers

2

(included in the total strength of Class IV Staff)

(V)

Para-Medical/Nursing Staff

1. Matron

1

2. Sister-in-charge

6

Wards

4

O.T./Labour room and O.P.D.

2

3. Staff Nurses

25

Wards

20

O.T./Labour room and O.P.D. Reliefs

5

4. Steward

1

5. Lab.

Technician/Blood Bank Technician

4

6. Senior Radiographer

1

7. Junior Radiographer

2

8. E.C.G.

Technician

1

9. Physiotherapist/Occupational therapist

1

10. Pharmacist

4

11. Linen-Keeper

1

(VI)

Other Staff

1. Cook

2

2. Cook Mates

3

3. Driver of Ambulance Van

As per yerdstick for ambulance

4. Class IV including chowkidar and Messengers

55

(VII)

Part-Time

Carpenter

1

Tinsmith-cum-plumber

1

Electrician

1

Tailor

1

Barber

2

Gardener

As required

150.

Bed-Hospital

1. Distribution Of Beds

(i) Medicine

50

(ii) Surgery

35

(iii) Obstetrics

& Gynecology

20

(iv) Pediatrics

15

(v) Orthopedic

12

(vi) Casualty

4

(vii) Pooled beds for other specialties

14

2. Provision Of Specialities

The following specialities may be provided:

(i)

Medicine

(ii)

Surgery

(iii)

Obstetrics & Gynaecology

(iv)

Orthopaedic

(v)

Anaesthesia

To meet the needs of other specialities, arrangements should be made with other Government Hospitals except in specialities where part-time specialists are available.

3. Provision Of Other Facilities

1. Casualty

2. Laboratory

3. X-Ray

4. Two Operation Theatres (One septic & one aseptic)

5. One Labour Room

6. E.C.G.

7. Central Sterilisation

8. Physiotherapy

9. Kitchen

10. Central Store

11. Recreation facilities for patients

12. Small incinerator

13. Dhoti Ghat/Local arrangement for washing, if possible

14. Medical Record Section

15. Mortuary

4. Requirement Of Specialist, Medical And Other Staff

(i) SPECIALISTS

1. Medicine

1

2. Surgery

1

3. Obstetric & Gynecology

1

4. Orthopedic

1

5. Anesthesia

1

Normally the senior-most Specialist should hold the charge of Medical Superintendent in addition to his own duties

(ii) Junior Specialists

1. Radiology

1

2. Pathology

1

(iii) PART-TIME SPECIALISTS

1. Eye

1

2. E.N.T.

1

3. Skin & S.T. Diseases

1

4. Chest Diseases

1

5. Dental

1

6. Psychiatry

1

(iv) MEDICAL OFFICERS

General Duty Medical Officers

10

(v) ADMINISTRATION

1. Office Supdt./Lay Secretary

1

(Non-medical Non-Gazetted)

2. Head Clerk

1

3. Cashier

1

4. Stenographer

5. U.D.C.

3

6. L.D.C.

9

(i) General Office

6

(ii) Radiology/Pathology

(iii) Registration Booth

2

7. Medical (Records Clerk)

1

8. Messengers

3

(included in the total strength of Class IV Staff)

(vi) PARA-MEDICAL/NURSING STAFF

1. Matron

- 1
2. Dietician
1
3. Sister-in-charge
10
Wards
6
O.T. Labour room
& OPD
4
4. Staff Nurses
38
Wards
30
O.T./Labour room
& OPD
7
Relief Blood Bank
1
5. Lab. Technician
3
6. Lab. Assistant
3
7. Blood Bank Technician
1
8. Senior Radiographer
1
9. Junior Radiographer
2
10. E.C.G.
Technician
1
11. Lab. Assistant for Blood Bank
1
12. O.T. Technician
1
13. C.S.R.
Technician
1
14. C.S.R.
Assistant
1
15. Physiotherapist/Occupational Therapist
1
16. Pharmacist
4
17. Linen-Keeper
1
- (vii) OTHER STAFF
1. Cook
2

2. Cook Mates

3

3. Driver of Ambulance Van

As per yardstick for ambulances

4. Class IV (Including chowkidar, messengers)

75

5. Part-time

Carpenter

1

Tinsmith-cum-plumber

1

Electrician

1

Tailor

2

Barber

2

200.

BED-HOSPITAL

DISTRIBUTION OF BEDS

(i) Medicine

65

(ii) Surgery

45

(iii) Obstetric

& Gynecology

30

(iv) Pediatrics

20

(v) Orthopedics

15

(vi) E.N.T.

10

(vii) Eye

10

(viii) Casualty

5

II. PROVISION OF SPECIALITIES

The following specialties may be provided:

(i) Medicine

(ii) Surgery

(iii) Obstetrics

& Gynecology

(iv) Pediatrics

(v) Orthopedics

(vi) Anesthesia

(vii) Radiology

(viii) Pathology

III. PROVISION OF OTHER FACILITIES

1. Casualty

2. Laboratory

3. X-Ray
4. Two Operation Theatres (One septic & one aseptic)
5. One Labour Room
6. E.C.G.
7. Central Sterilization
8. Physiotherapy
9. Kitchen
10. Central Stores
11. Recreation facilities for patients
12. Small incinerator
13. Dhobi Ghat/Local arrangement for washing if possible
14. Medical Records Section
15. Mortuary

IV. REQUIREMENT OF SPECIALITIES, MEDICAL AND OTHER STAFF

(i) SPECIALISTS

1. Medicine
1
2. Surgery
1
3. Obstetrics & Gynecology
1
4. Pediatrics
1
5. Orthopedics
1
6. Anesthesia
1
7. Radiology
1
8. Pathology
1

Normally the senior-most Specialist should hold the charge of Medical Superintendent in addition to his own duties.

(ii) JUNIOR SPECIALISTS

1. Medicine
1
2. Surgery
1
3. Obst. & Gynecology
1

(iii) PART-TIME SPECIALISTS

1. Eye
1
2. E.N.T.
1
3. Skin & S.T. Diseases
1
4. Chest Diseases
1
5. Dental
1
6. Psychiatry

1

MEDICAL OFFICERS

(iv) General Duty Medical Officers for various Departments including junior Specialists

14

Discretion of appointment of junior Specialist in Medicine, Surgery and Obst. & Gynecology may vest with the authorities.

ADMINISTRATION

1. Asstt. Medical

1

Supdt./Lay Secretary (Gazetted) (Preferably trained in Hospital Admn.)

2. Office Superintendent (Non-Gazetted)

1

3. Head Clerk

1

4. Cashier

1

5. Stenographer

1

6. U.D.C.

3

7. L.D.C.

9

(i) Gen. Office

6

(ii) Pathology/Radiology

1

(iii) Registration

2

8. Medical Records Clerk

1

9. Messenger

4

(included in the total strength of Class IV Staff)

(vi) PARA-MEDICAL/NURSING STAFF

1. Matron

1

2. Dietician

1

3. Sister-in-charge

12

(i) Wards

8

(ii) O.T./Labour room and O.P.D

4

4. Staff Nurses

48

(i) Wards

40

(ii) O.T./Labour room and O.P.D.

7

(iii) Blood Bank

8

5. Laboratory Technician

4

6. Laboratory Assistant

2

7. Blood Bank Technician

1

8. Lab. Asstt. for Blood Bank

1

9. Sr. Radiographer

1

10. Jr. Radiographer

3

11. E.C.G. Technician

2

12. O.T. Technician

1

13. C.S.R. Technician

1

14. C.S.R. Assistant

1

15. Physiotherapist/Occupational Therapist

1

16. Pharmacist

5

17. Linen-Keeper

1

(vii) OTHER STAFF

1. Cook

3

2. Cook Mates

4

3. Driver of Ambulance Van Cleaner-cum-stretcher bearer

As per yardstick for ambulances

4. Class IV Staff

109

(including Chowkidars and Messengers)

5. Part-time

Carpenter

1

Tinsmith-cum-plumber

1

Electrician

2

Tailor

2

Barber

2

Gardener

1

250.

BED-HOSPITAL

1. DISTRIBUTION OF BEDS

(i) Medicine

75

(ii) Surgery

58

(iii) Obstetric

& Gynecology

40

(iv) Pediatrics

25

(v) Orthopedics

20

(vi) E.N.T.

12

(vii) Eye

12

(viii) Casualty

8

II. PROVISION OF SPECIALITIES

The following specialties may be provided:

(i) Medicine

1

(ii) Surgery

1

(iii) Obstetric

& Gynecology

1

(iv) Pediatrics

(v) Orthopedics

(vi) Anesthesia

(vii) Radiology

(viii) Pathology

III. PROVISION OF OTHER FACILITIES

1. Casualty

2. Laboratory

3. X-Ray

4. Three Operation Theatres (One aseptic & one septic & one Obstt. Gynae).

5. One Labour Room

6. E.C.G.

7. Central Sterilization

8. Physiotherapy/Occupational Therapy

9. Kitchen

10. Central Stores

11. Recreation facilities for patients

12. Small incinerator

13. Dhobi Ghat/Local arrangement for washing if possible

14. Medical Records Section

15. Mortuary

IV. REQUIREMENT OF SPECIALISTS MEDICAL AND OTHER STAFF

(i) SPECIALISTS

1. Medicine

1

2. Surgery

1

3. Obst. & Gynecology

1

4. Pediatrics

1

5. Orthopedics

1

6. Anesthesia

1

7. Radiology

1

8. Pathology

1

Normally the senior-most Specialist should hold the charge of Medical Superintendent in addition to his own duties.

(ii) JUNIOR SPECIALISTS

1. Medicine

1

2. Surgery

1

3. Obst. & Gynecology

1

(iii) PART-TIME SPECIALISTS

1. Eye

1

2. E.N.T.

1

3. Skin, S.T.

Diseases

1

4. Chest diseases

1

5. Dental

1

6. Psychiatry

1

(iv) MEDICAL OFFICERS

General Duty Medical Officers for various Departments including Junior Specialists

17

Discretion of appointing Junior Specialist in Medicine, Surgery and Obst. & Gynecology may vest with the authorities.

(v) ADMINISTRATION

1. Asstt. Medical Supdt./Lay Secretary, Gazetted,
(Preferably trained in hospital Administration)

1

2. Office Superintendent (Non-Gazetted)

1

3. Head Clerk

1

4. Cashier
1
5. Stenographer
1
6. U.D.C.
3
7. L.D.C.
12
- (i) Genl. Office
8
- (ii) Radiology
1
- (iii) Pathology
1
- (iv) Registration
2
8. Medical Records Clerk
1
9. Messengers
4
(included in total strength of Class IV Staff)
- (vi) PARA-MEDICAL/NURSING STAFF
1. Matron
1
2. Dietician
1
3. Sister-in-charge
14
- (i) Wards
10
- (ii) O.T./labour room and O.P.D.
4
4. Staff Nurses
58
- (i) Wards
50
- (ii) O.T./Labour room and OPD and Relief
7
- (iii) Blood Bank
1
5. Lab. Technician
3
6. Lab. Assistant
4
7. Blood Bank Technician
1
8. Lab. Assistant for Blood Bank
1
9. Senior Radiographer
1
10. Junior Radiographer

3

11. E.C.G.

Technician

1

12. O.T. Technician

1

13. O.T. Assistant

1

14. C.S.R.

Technician

1

15. C.S.R.

Assistant

1

16. Physiotherapist

1

17. Occupational Therapist

1

18. Pharmacist

6

19. Linen-Keeper

1

(vii) OTHER STAFF

1. Office Mukadam

(Supervisor for attendants)

2. Cook

4

3. Cook Mates

7

4. Driver of ambulance van, cleaner-cum-stretcher bearer

As per yardstick for ambulances

5. Class IV staff

(including Chowkidar and Messengers)

125

6. Part-time

1

Carpenter

1

Tinsmith-cum-plumber

1

Electrician

1

Tailors

2

Barbers

2

Gardener

1

300.

BED-HOSPITAL

I. DISTRIBUTION OF BEDS

(i) Medicine

80

(ii) Surgery

80

(iii) Obstetrics & Gynecology

40

(iv) Pediatrics

30

(v) Orthopedics

25

(vi) E.N.T.

18

(vii) Eye

17

(viii) Casualty

10

II. PROVISION OF SPECIALITIES

The following specialties may be provided:

(i) Medicine

(ii) Surgery

(iii) Obstetrics

& Gynecology

(iv) Pediatrics

(v) Orthopedic

(vi) E.N.T.

(vii) Eye

(viii) Anesthesia

(ix) Radiology

(x) Pathology

III. PROVISION OF OTHER FACILITIES

1. Casualty

2. Laboratory

3. X-Ray

4. 5 Operation theatres (One twin for aseptic/one twin for septic surgery & one for Obst. & Gynae.)

5. One Labour Room (Near the Gynae, Ward)

6. E.C.G.

7. Central Sterilization

8. Physiotherapy/Occupational Therapy

9. Kitchen

10. Central Stores

11. Recreation facilities for patients

12. Nurses Hostel

13. Incinerator

14. Dhobi Ghat with Electric Irons & Space for drying

15. Medical Record Section

16. Mortuary.

IV. REQUIREMENT OF SPECIALISTS MEDICAL AND OTHER STAFF

(i) MEDICAL SUPERINTENDENT

1

The medical Superintendent should be purely administrative preferably with post graduate qualification in hospital administration.

(ii) SPECIALISTS

1. Medicine
2
2. Surgery
2
3. Obst. & Gynecology
1
4. Pediatric
1
5. Orthopedic
1
6. Eye
1
7. E.N.T.
1
8. Anesthesia
1
9. Radiology
1
10. Pathology
1

(iii) JUNIOR SPECIALITIES

- Bio-Chemist (Non-Medical)
1

(iv) PART-TIME SPECIALISTS

- Skin & S.T.
Diseases
1
Dental
1
Psychiatry
1

(v) MEDICAL OFFICERS

20

General Duty Medical Officers for various Departments including Jr. Specialist.

Note.-Whenever the hospital is recognised for house jobs, provision may be made allowing appointment of 2 house Surgeons against one post of General Duty Medical Officer.

Similarly, Registrars may count against equal number of posts of G.D.M.O.

(vi) ADMINISTRATION

1. Medical Superintendent
1
2. Office Superintendent/Lay Secretary (non-medical, non-gazetted)
1
3. P.A. for Med. Supdt.
1
4. Head Clerk
3
5. Cashier
1
6. Stenographer
2

7. U.D.C.

6

8. L.D.C. including

18

Radiology

2

Pathology

1

Registration & Record

3

9. Medical Records Clerk

1

10. Messengers

4

(included in the total strength of Class IV staff)

(vii) PARA-MEDICAL, NURSING STAFF

1. Matron

1

2. Asstt. Matron

1

3. Dietician

1

4. Sister-in-charge

17

(i) Wards

12

(ii) O.T.

2

(iii) Labour room

1

(iv) C.S.D.

1

(v) O.P.D.

1

5. Staff Nurses

81

(i) Wards

60

(ii) O.T.

10

(iii) Labour room

4

(iv) C.S.D. Deptt.

3

(v) O.P.D.

3

(vi) Blood Bank

1

6. Laboratory Technician

5

7. Laboratory Assistant

4

8. X-Ray Tech.

Selection grade Radiographer

1

9. Sr. Radiographer

2

10. Jr.

Radiographer

4

11. E.C.G.

Technician

2

12. Blood Bank Technician

2

13. O.T. Technician

2

14. O.T. Assistant

3

15. C.S.D.

Technician

1

16. C.S.D.

Assistant

3

17. Physiotherapist

1

18. Occupational Therapist

1

19. Chief Pharmacist

1

20. Pharmacist

6

21. Linen-Keeper

2

(viii) OTHER STAFF

1. Office Mukadam (Supervisor of attendants)

1

2. Jamadar (Supervisor for Sweepers)

1

3. Head Cook

1

4. Cooks

5

5. Cook Mates

9

6. Dhobi

5

7. Driver of Ambulance Van/cleaner stretcher bearer

As per yardstick for ambulance

8. Class IV Staff including Chowkidar and Messengers

150

9. Part-time

Gardener

As required

Carpenter

1

Tinsmith-cum-plumber

1

Tailor

2

Barber

As required

Electrician

1

Cook, Attendant, Sweeper and Chowkidar for Nurses Hostel are not included in this list. The same are indicated in Annexure

"AA".

400.

BED-HOSPITAL

I. DISTRIBUTION OF BEDS

(i) Medicine

110

(ii) Surgery

90

(iii) Obst. & Gynecology

70

(iv) Pediatric

40

(v) Orthopedics

35

(vi) E.N.T.

20

(vii) Eye

20

(viii) Casualty

10

(ix) Intensive Care Unit

5

II. PROVISION OF SPECIALITIES

The following specialties may be provided:

(i) Medicine

(ii) Surgery

(iii) Obst. & Gynecology

(iv) Pediatrics

(v) Orthopedics

(vi) E.N.T.

(vii) Eye

(viii) Anesthesia

(ix) Radiology

(x) Pathology

III. PROVISION OF OTHER FACILITIES

1. Casualty

2. Intensive Care Unit
3. Blood Bank
4. Laboratory
5. X-Ray
6. Five Operation Theatres (One twin for aseptic, one twin for septic and one for Obst. & Gynae., etc.)
7. One Labour Room (Near the Gynae. ward)
8. E.C.G.
9. Central Sterilization
10. Physiotherapy/Occupational therapy
11. Kitchen
12. Central Stores
13. Recreation facilities for patients
14. Nurses Hostel
15. Incinerator
16. Steam laundry
17. Medical Records
18. Library
19. Mortuary

IV. REQUIREMENT OF SPECIALIST, MEDICAL AND OTHER STAFF

(i) MEDICAL SUPERINTENDENT

Medical Superintendent should be purely administrative preferably with post graduate qualification in Hospital Administration.

(ii) SPECIALISTS

1. Medicine
2
2. Surgery
2
3. Obstetrics & Gynae.
2
4. Pediatrics
1
5. Orthopedics
1
6. E.N.T.
1
7. Eye
1
8. Anesthesia
1
9. Radiology
1
10. Pathology
1

(iii) JUNIOR SPECIALISTS

1. Bio-chemist
(non-medical)
1
2. Jr.
Microbiologist
1

3. Blood Bank Officer

1

(iv) PART-TIME SPECIALISTS

Skin & S.T.

diseases

1

Chest diseases

1

Dental

1

Psychiatry

1

(v) MEDICAL OFFICERS

1. General Duty Medical Officers

27

2. Intensive Care Unit

3

30

Note.-Whenever the hospital is recognised for house jobs, provision may be made allowing appointment of 2 House Surgeons against one post of General Duty Medical Officer.

Similarly, Registrars may count against equal number of posts of General Duty Medical Officers.

(vi) ADMINISTRATION

1. Medical Superintendent

1

2. Administrative Officer

1

3. Office Superintendent(non-medical, non-gazetted)

1

4. P.A. to Medical Superintendent

3

5. Head Clerk

1

6. Cashier

1

7. Stenographer

1

8. U.D.C.

6

9. L.D.C. including

19

Radiology

1

Pathology

1

Registration

3

10. Medical Record Clerks

2

11. Messengers

5

(included in the total strength of Class IV staff)

(vii) PARA-MEDICAL/NURSING STAFF

1. Matron

1

2. Assistant Matron

1

3. Dietician

1

4. Sister-in-charge

23

Wards

16

O.T.

3

LabourRoom

2

C.S.D.

1

O.P.D.

1

5. Staff Nurses

113

(i) Wards

84

(ii) O.T.

15

(iii) Labour Room

4

(iv) U.P.D./Blood Bank/C.S.D., etc.

10

6. Laboratory Technician

6

7. Laboratory Assistant

6

8. X-Ray Tech./Selection Grade Radiographer

1

9. Senior Radiographer

2

10. Junior Radiographer

5

11. E.C.G.

Technician

2

12. Blood bank Technician

2

13. Lab. Asstt. for Blood Bank

2

14. O.T. Technician

4

15. O.T. Assistant

6

16. C.S.D.

Technician

1

17. C.S.D.

Assistant

4

18. Physiotherapist

1

19. Occupational Therapist

1

20. Chief Pharmacist

1

21. Pharmacist

8

22. Linen-Keeper

2

(viii) OTHER STAFF

1. OfficeMukadam(Supervisor for attendants)

1

2. Jamadar(Supervisor for Sweepers)

1

3. Head Cook

1

4. Cooks

8

5. Cook Mates

10

6. Laundry Supervisor

1

7. Boiler Attendant

1

8. Laundry Operators

10

9. Driver of Ambulance Van Cleaner-cum-stretcher bearer

As per yardstick for ambulance

10. Class IV staff includingChowkidarsand messengers

200

Cooks, Attendants and Sweepers for Nurses' Hostel are not included in this list. The same are indicated in annexure "AA".

11. Part-time

Carpenter

1

Tinsmith-cum-plumber

2

Tailors

2

Barbers

2

Electrician

2

Gardener

As required

500.

BED-HOSPITAL

I. DISTRIBUTION OF BEDS

(i) Medicine

130

(ii) Surgery

120

(iii) Obst. & Gynecology

90

(iv) Pediatrics

50

(v) Orthopedics

44

(vi) E.N.T.

25

(vii) Eye

25

(viii) Casualty

10

(ix) Intensive Care Unit

6

II. PROVISION OF SPECIALITIES

The following specialties may be provided:

(i) Medicine

(ii) Surgery

(iii) Obst. & Gynecology

(iv) Pediatrics

(v) Orthopedics

(vi) E.N.T.

(vii) Eye

(viii) Anesthesia

(ix) Radiology

(x) Pathology

(xi) Skin & S.T. diseases

(xii) Chest diseases

(xiii) Dental

(xiv) Psychiatry

III. PROVISION OF OTHER FACILITIES

1. Casualty

2. Intensive Care Unit

3. Blood Bank

4. Laboratory

5. X-Ray

6. Six Operation Theatres (Two twin for aseptic, one for septic and one for Obst. & Gynae., etc.)

7. Two Labour Rooms (near the Gynae.
ward septic and aseptic)

8. E.C.G.

9. Central Sterilization

10. Physiotherapy/Occupational Therapy

11. Kitchen

12. Central Stores

13. Recreational facilities for patients
14. Nurse's Hostel
15. Incinerator
16. Steam Laundry
17. Medical Records Section
18. Library
19. P.B.X.
20. Mortuary

IV. REQUIREMENT OF SPECIALISTS, MEDICAL AND OTHER STAFF

(i) Medical Superintendent

(ii) Dy. Medical Superintendent

Medical Superintendent and Dy. Medical Superintendent should be purely administrative preferably with post-graduate qualification in hospital administration.

(iii) SPECIALISTS

1. Medicine

3

2. Surgery

3

3. Obstetric & Gynae.

2

4. Pediatrics

1

5. Orthopedics

1

6. EN.T.

1

7. Eye

1

8. Anesthesia

1

9. Radiology

1

10. Pathology

1

11. Skin & S.T.

diseases

1

12. Chest diseases

1

13. Dental

1

14. Psychiatry

1

(iv) JUNIOR SPECIALITIES

1. Bio-chemist

(non-medical)

1

2. Jr.

Microbiologist

1

3. Blood Bank Officer

1

4. Anesthetist

1

5. Radiologist

1

(v) MEDICAL OFFICERS

1. General Duty Medical Officers

34

2. Intensive Care Unit

1

37

Note.-Whenever the hospital is recognised for house jobs provision may be made allowing appointment of two House Surgeons against one post of General Duty Medical Officer.

Similarly, Registrars may count against equal number of post of General Duty Medical Officers.

(vi) ADMINISTRATION

1. Medical Superintendent

1

2. Dy. Medical Superintendent

1

3. Administrative Officer

1

4. Office Superintendent

(Non-medical, non-gazetted)

1

5. P.A. to Medical Supdt.

1

6. Head Clerk

3

7. Cashier

1

8. Stenographer

2

9. U.D.C.

7

10. L.D.C.

including :

(sic)-

Radiology

1

Pathology

1

Registration

3

11. Telephone Operators

3

12. Medical Records Clerk

3

13. Messengers

6

(included in the total strength of Class IV Staff)

(vii) PARA-MEDICAL/NURSING STAFF

1. Matron
1
2. Asstt. Matron
2
3. Dietician
1
4. Asstt. Dietician
1
5. Sister-in-charge
27
 - (i) Wards
20
 - (ii) O.T.
3
 - (iii) Labour Room
2
 - (iv) C.S.D.
1
 - (v) C.S.D.
1
6. Staff Nurses
136
 - (i) Wards
104
 - (ii) O.T.
8
 - (iii) Labour Room
4
 - (iv) O.P.D./Blood Bank/C.S.D./Relief
10
7. Technical Assistant
3
 - (i) Biochemistry
1
 - (ii) Clinical Pathology
1
 - (iii) Microbiology
1
8. Laboratory Technician
7
9. Laboratory Assistant
7
10. X-Ray Tech./Selection
1
11. Sr.
Radiographer
2
12. Jr. Radiographer
6
13. E.C.G.
Technician

3

14. Blood Bank Technician

2

15. Lab. Asstt. for Blood Bank

2

16. O.T. Technician

5

17. O.T. Assistant

7

18. C.S.D.

Technician

1

19. C.S.D.

Assistant

5

20. Physiotherapist

1

21. Occupational Therapist

1

22. Chief Pharmacist

1

23. Pharmacist

9

24. Linen-Keeper

2

(viii) OTHER STAFF

1. OfficeMukadam(Supervisor for Attendants)

1

2. Jamadar (Supervisor for Sweepers)

1

3. Head Cook

1

4. Cooks

1

5. Cook Mates

10

6. Laundry Supervisor

12

7. Boiler Attendant

1

8. Laundry Operators

1

9. Driver of Ambulance Van cleaner-cum-stretcher bearer

As per yardstick for ambulance

10. Class IV staff includingChowkidarand messengers

250

Cooks, Attendants and Sweepers for Nurses' Hostel are not included in this list. The same are indicated in Annexure "AA".

11. Part-time

Carpenter

1

Tinsmith-cum-plumber

2

Tailors

2

Barbers

2

Electricians

2

Gardeners

As required

600.

BED-HOSPITAL

I. DISTRIBUTION OF BEDS

(i) Medicine

180

(ii) Surgery

134

(iii) Obst. & Gynecology

100

(iv) Pediatrics

60

(v) Orthopedics

50

(vi) E.N.T.

30

(vii) Eye

30

(viii) Casualty

10

(ix) Intensive Care Unit

6

II.PROVISION OF SPECIALITIES

(i) Medicine

(ii) Surgery

(iii) Obst. & Gynecology

(iv) Pediatrics

(v) Orthopedics

(vi) E.N.T.

(vii) Eye

(viii) Anesthesia

(ix) Radiology

(x) Pathology

(xi) Skin & S.T. diseases

(.xii) Chest diseases

(xiii) Dental

(xiv) Psychiatry

III. PROVISION OF OTHER FACILITIES

1. Casualty

2. Intensive Care Unit

3. Blood Bank

4. Laboratory

5. X-Ray
6. Six Operation Theatres (two twin for aseptic, one for septic and one for Obst. & Gynae., etc.)
7. Two Labour Rooms (Near the Gynae.
ward septic and aseptic)
8. E.C.G.
9. Central Sterilization
10. Physiotherapy/Occupational Therapy
11. Kitchen
12. Central Stores
13. Recreation facilities for patients
14. Nurse's Hostel
15. Incinerator
16. Steam Laundry
17. Medical Records Section
18. Library
19. P.B.X.
20. Mortuary

IV. REQUIREMENT OF SPECIALISTS, MEDICAL AND OTHER STAFF

(i) MEDICAL SUPERINTENDENT

(ii) DY. MEDICAL SUPERINTENDENT

Medical Superintendent and Dy. Medical Superintendent should be pure administrative preferably with graduate qualification in Hospital administration.

(iii) SPECIALISTS

1. Medicine

3 if necessary one

2. Surgery

3 may be a senior

3. Obstetric & Gynecology

2 Specialist

4. Pediatrics

1

5. Orthopedics

1

6. E.N.T.

1

7. Eye

1

8. Anesthesia

1

9. Radiology

1

10. Pathology

1

11. Skin & S.T.

diseases

1

12. Chest diseases

1

13. Dental

1

14. Psychiatry

1

(iv) JUNIOR SPECIALISTS

1. Biochemist (non-medical)

1

2. Junior Microbiologist

1

3. Blood Bank Officer

1

4. Anesthetist

1

5. Radiologist

1

(v) MEDICAL OFFICERS

1. General Duty Medical Officers

40

2. Intensive Care Unit

3

43

Note.-Whenever the Hospital is recognised for house jobs, provision may be made allowing appointment of two House Surgeons against one post of General Duty Medical Officer.

Similarly, Registrars may count against equal number of post of General Duty Medical Officers.

(vi) ADMINISTRATION

1. Medical Superintendent

1

2. Dy. Medical Superintendent

1

3. Administrative Officer

1

4. Office Superintendent (non-medical, non-gazetted)

1

5. P.A. to Medical Supdt.

1

6. Head Clerk

3

7. Cashier

1

9. U.D.C.

8

10. L.D.C.

including:

21

(i) Radiology

1

(ii) Pathology

1

(iii) Registration

3

11. Telephone Operator

3

12. Medical Record Clerk

3

13. Messengers

6

(included in the total strength of Class IV Staff)

(vii) PARA-MEDICAL/NURSING STAFF

1. Matron

1

2. Asstt. Matron

2

3. Dietician

1

4. Asstt. Dietician

1

5. Sister-in-charge

32

(i) Wards

24

(ii) O.T.

4

(iii) Labour Room

2

(iv) C.S.D.

1

(v) O.P.D.

1

6. Staff Nurses

156

(i) Wards

124

(ii) O.T.

18

(iii) Labour Room

4

(iv) O.P.D./Blood Bank/ C.S.D./Relief

10

7. Technical Assistants

3

(i) Biochemistry

1

(ii) Clinical

1

(iii) Microbiology

1

8. Laboratory Technician

7

9. Laboratory Assistant

7

10. X-Ray Tech./Selection Grade Radiographer

1

11. Senior Radiographer

2

12. Junior Radiographer

7

13. E.C.G.

Technician

3

14. Blood Bank Technician

2

15. Lab. Asstt. for Blood Bank

2

16. O.T. Technician

6

17. O.T. Assistant

7

18. C.S.D.

Technician

1

19. C.S.D.

Assistant

6

20. Physiotherapist

1

21. Occupational Therapist

1

22. Chief Pharmacist

1

23. Pharmacist

10

24. Linen-Keeper

2

(viii) OTHER STAFF

1. Office Mukadam (Supervisor for Attendants)

1

2. Jamadar (Supervisor for Sweepers)

1

3. Head Cooks

1

4. Cooks

11

5. Cook Mates

13

6. Laundry Supervisor

1

7. Boiler Attendant

1

8. Laundry Operators

10

9. Driver of Ambulance Van cleaner-cum-stretcher bearer ambulances

As per yard stick for ambulances

10. Class IV staff including Chowkidars and Messengers

300

Cooks, Attendants and Sweepers for Nurses' Hostel are not included in this list. The same are indicated in Annexure "AA"

11. Part-time

Carpenter

1

Tinsmith-cum-plumber

2

Tailors

2

Barbers

2

Electricians

2

Gardeners

As required.

ANNEXURE AA STAFF FOR NURSES HOSTEL/DOCTORS HOSTEL

No. of Residents

Head Cook

Cook

Mates

Masalchi

Bearers

Sweepers

Upto25

1

...

1

1

2

2

26 to 50

1

2

1

3

4

2

51 to 75

1

3

2

4

5

3

76 to 100

1

4

3

5

6

4

101 to 125

2

4
4
6
7
5
II

Standard Of Maternity Centres

(See rule 34)

I. Building

1. Maternity Centre for a mine employing upto 1,000 workers :-

(i)

Consulting and office room (5 metres x 4 metres)

(ii)

Labour room (5 metres x 4 metres)

(iii)

Annexe to the labour room for sterilizing (3 metres x 3 metres)

(iv)

Dispensary room (5 metres x 4 metres)

(v)

Store room (3 metres x 3 metres)

(vi)

Ward for two beds (5 metres x 4 metres)

(vii)

Bath room and latrine (flush) two (2 metres x 3 metres)

(viii)

Annexe to the bath room for bathing babies (2 metres x 3 metres)

(ix)

Washing room (2 metres x 3 metres)

(x)

Kitchen (2 metres x 3 metres)

(xi)

Covered waiting shed (15 square metres).

Note.-A part of the ward may be screened off to provide for work room for nursing staff.

2. Maternity Centres for a mine employing upto 2,000 workers:

(i)

Consulting room (5 metres x 4 metres)

(ii)

Labour room (5 metres x 4 metres)

(iii)

Annexe to the labour room for sterilizing (3 metres x 3 metres)

(iv)

Dispensary room (5 metres x 4 metres)

(v)

Work room for nursing staff for storage of medicines, maintenance and preparation of supplies and maintenance of records and reports (5 metres x 4 metres)

(vi)

Store room (3 metres x 3 metres)

(vii)

Ward for four beds (6 metres x 5 metres)

(viii)

Bath room and latrine (two flush) (2 metres x 3 metres)

(ix)

Annexe to the bath room for bathing babies (2 metres x 3 metres)

(x)

Washing room (2 metres x 3 metres)

(xi)

Kitchen (2 metres x 3 metres)

(xii)

Laboratory room (10 square metres)

(xiii)

Covered waiting accommodation (15 square metres).

3. Maternity Centre for a mine employing over 2,000 workers :-

(i)

Consulting room (5 metres x 4 metres)

(ii)

Labour room (5 metres x 4 metres)

(iii)

Annexe to the labour room for sterilizing (3 metres x 3 metres)

(iv)

Dispensary room (5 metres x 4 metres)

(v)

Workroom for nursing staff for storage of medicines, maintenance and preparation of supplies and maintenance of records and reports (5 metres x 4 metres)

(vi)

Minor operation room (5 metres x 4 metres)

(vii)

Store room (3 metres x 3 metres)

(viii)

Ward for six beds (7 metres x 6 metres)

(ix)

Bath room and latrine (three-flush) (2 metres x 3 metres)

(x)

Annexe to the bath room for bathing babies (2 metres x 3 metres)

(xi)

Washing room (2 metres x 3 metres)

(xii)

Kitchen (2 metres x 3 metres)

(xiii)

Laboratory room (15 square metres)

(xiv)

Covered waiting accommodation (25 square metres).

II. Staff

1. Maternity Centre for a mine employing 1,000 workers and below:-

(i) Medical Licentiate or Graduate (Lady)

1

(ii) Lady Health Visitors

2(full time)

(iii) Sweeper (Females)

2

(iv) Compounder

1

2. Maternity Centre for a mine employing 1,001 to 2,000 workers :-

(i) Medical Graduate (Lady)

1

(ii) Compounder

1

(iii) Lady Health Visitors

2(full time)

(iv) Sweeper (Females)

3

(v) Ayahs

2

(vi) Cook 31

3. Maternity Centre for a mine employing more than 2,000 workers:-

(i) Medical Graduate (Lady)

1

(ii) Nurse

1

(iii) Lady Health Visitors

3

(iv) Compounder

1(full time)

(v) Sweepers (Females)

3

(vi) Ayahs

3

(vii) Cook

1

III. List Of Drugs, Surgical Equipments, Dressings, Etc., For
Maternity Centres

A. Drugs

1. Acid Acetic

2. Acid Boric

3. Acid Carbolic

4. Acid Salicylic

5. Aqua Distillata

6. Ammon Carb

7. Aspirin

8. Acrifiavin or other anti-septic dye

9. Benedict's solution

10. Calcium lactate

11. Copper sulphate

12. Calamina Prepareate

13. Cod Liver Oil

14. Ephedrine Hydrochlor (1/2 gr. tab.)

15. Ether

16. Esct. Clycrr. Liq.

17. Ferri Suiph

18. Ferriet Ammoni citras

19. Glucose

20. Glycerine

21. Gum acacia

22. Hydrarg ammoniata

23. Kaoline
24. Liq. Ammon Acetate
25. Liq. Plumbi subacetate fort
26. Lysol
27. Mag. Oxide powder or Mag. Trisillicate
28. Mag. Sulph
29. Multi vitamin tab.
30. Oil Ricini
31. Oil Menth pip
32. Oil Olive or Oil of arachis
33. Paludrine tabs
34. Phenobarbitone
35. Pot Bromide
36. Pot Citrate
37. Pot Iodide
38. Pot Permanganate
39. Protargol or Argyrol 40. Pulv. Ipecac co.
41. Pulv. Quinine sulph
42. Sodi Bicarb
43. Sodi Salicylate 44. Spt. Ammon Aromat
45. Spt. Methyl
46. Spt. Rect
47. Sulphanilamide or sulpha diazine tablets
48. Sulphaguanidine Tabs.
49. Sulphanilamide powder
50. Tab. Digozin or Pill Digitalis Co. B.P.C.
51. Tab. Laxative Co. B.P.C
52. Tinct. Belladonna
53. Tict. Benoin Co.
54. Tinct. Opii Camphorata
55. Tinct. Card Co.
56. Tinct. Hyoscyamus
57. Tinct. Iodine
58. Ung. Sulphuric B.P.C.
59. Vaseline
60. Vin Ipecac or Tinct. or Liq.
61. Zinc Oxide
62. Adrenalin Hydrochloride Liquor (1:1000)
63. Coranine or Nikethamide
64. Emetine Hydrochlor (amp. or tab.)
65. Gr. 1
66. Gr. 1/2
67. Injection Quinine Gr. 10
68. Peracine Hydrochlor or Novocain 2% amp.
69. Serum Tatanus anti-toxin 1,500 units
70. Seluseptasine or other injectable sulphamide
71. Tab. Atropine (1/100 gr.)
72. Tab. Morphine
73. Pencillin 1,00,000 unit ampoules or 4,00,000 unit amps.)
74. Streptomycine
75. 90 PAS.

- 76. Isonicotinic Acid Hydrazide
- 77. Ext. Ergot Liquid
- 78. Ersdhui Capsules or Neogynergin
- 79. Lovelive ampoules
- 80. Introdex
- 81. Dextrose and sodium chloride. injection U.S.P. in transfusion bottles
- 82. Distilled water ampoules
- 83. Liquid paraffin
- 84. Vinegars
- 85. Tetanus toxoid.

Note. - The actual quantities of the above mentioned items to be stocked shall be such as are found necessary in the light of the day-to-day working of the maternity centres provided that provision for drugs shall be made at each centre at least at the rate of 50 paise per annum per worker attached to the maternity centre.

B. DRESSINGS

1,000 workers or below

1001-2,000 workers

1

2

3

1. Bandage, roller 15 cm.

12

12

2. Bandage, roller, 10 cm.

12

12

3. Bandage, roller, 8 cm.

12

12

4. Bandages Triangular

12

12

5. Cotton Wool

1.35 kg

1.35 kg.

6. Gauze 1 metre each

12 metres

24 metres

7. Lint

200 gms.

300 gros.

8. Strapping adhesive 12 roller

2

2

9. Strapping adhesive 2 roller

2

2

10. Strapping adhesive 3 roller

2

2

11. Burn Dressing

12

12

C. MEDICAL AND SURGICAL EQUIPMENT

1. Basin 35 cms.

2

4

2. Bowls E. 3.5 cms.

2

2

3. Bowls E. 4.5 cms.

2

2

4. Female Catheters rubber & Metal (size 8 and 10)

4

4

5. Cup Feeding

2

4

6. Douche can with fittings

1

2

7. Drums dressing

2

2

8. Examination lamp

2

2

9. Forceps artery

2

2

10. Forceps Cheatle

1

1

11. Forceps Dissecting toothed

1

1

12. Forceps Dissecting plain

1

1

13. Hammer percussion

1

1

14. Jug measure

1

1

15. Lancet Vaccinations

1

1

16. Mirror Forehead

1

1

17. Needle aneurysm

-

1

18. Needle suture assorted

6

6

19. Probe

1

2

20. Razor Safety with blades

2

4

21. Rager's cholem apparatus or apparatus intravenous

1

1

22. Vaginal retractor

1

2

23. Vaginal speculum

1

2

24. Ovum Forceps

1

2

25. Hegggar's Delator

1 set

1 set

26. Curetto sharp and blunt flushing

1

1

27. Delivery

1

1

28. Factal Stethoscope

1

1

29. Palvimeter

1

1

30. Perforator

1

1

31. Cramotatory forceps

1

1

32. Maternity table

1

1

33. Stethoscope

1

2

34. Syringes 2 c.c.

2

2

35. Syringes 10 c.c.

2

2

36. Syringes 20 c.c. or above

1

1

37. Sphygmomanometer

1

1

38. Stove Primus

2

2

39. Scapies

1

2

40. Skinner mask

1

1

41. Stretcher

2

2

42. Scissors straight both ends sharp

1

1

43. Scissors straight Mayo

1

1

44. Sterilizer Instrument portable

1

1

45. Thermometers

2

4

46. Tongue depressor

2

2

47. Tape measure

1

1

48. Test type chart

1

1

49. Tray dressing

2

2

50. Tray kidney

2

2

51. Tourniquet

1

1

52. Weighing machine

1

1

53. Water Proof sheets of 2 metres

2

4

54. Autoclave

1

1

55. Stomach tube

1

1

56. Mouth gag

1

1

57. Cat gut assorted (numbers)

6 tubes

12 tubes

58. Silkworm gut or nylon thread

3 metres

6 metres

59. Sets of wooden splints

(4 1/2", 3', 1', 6")

1

1

60. Lifter

1

2

61. Enamel bucket

1

4

62. Stainless Steel dekchi 12 with cover

2

1

63. Wooden board 7' x 1 1/2" x 1"

1

2

64. Torch with spare cells

1

1

65. Stretcher

2

2

66. Eye Cups

1

1

D. OTHER EQUIPMENTS

1. Blankets

6

2
2. Bin for soiled clothes
2
4
3. Bottles drop with grooved stoppers
2
2
4. Corkscrew
2
2
5. Corks assorted
25
52
6. Dropper eye
2
2
7. Funnel 100 gms.
glass E.1
1
1
8. Filter paper
1 packet
1 packet
9. Gloves
2 pairs
4 pairs
10. Litmus paper red
2 packets
4 packets
11. Litmus paper blue
2 packets
4 packets
12. Measure glass 200 gms.
2
2
13. Measure glass 50 gms.
2
2
14. Minim glass
2
2
15. Pestle and Mortar composition
1
1
16. Pin safety
12
12
17. Pot delf with cover
2
2
18. Spatula

1

1

19. Slab ointment

1

1

20. Soap

4 cakes

8 cakes

21. Spirit lamp

2

2

22. Scales and weights

4

8

23. Slides glass

15 gms.

15 gms.

24. Scissors sharp

2

2

25. Towels ordinary

4

8

26. Tin opener

2

2

27. Test tubes

8

8

28. Test tubes stand

2

2

29. Test tube holder

2

2

30. Urine glass specimen

2

4

31. Matress

4

6

32. Beds

4

6

33. Nail Brush

2

4

34. Sand Bags 12" x 8"

3

6

E. FURNITURE

1. Almirah

1

1

2. Benches

4

8

3. Chairs

4

8

4. Cupboard poison

1

1

5. Examination couch female

1

1

6. Stools

2

2

7. Screen

1

2

8. Table Medical Officer

1

1

9. Table dispensing

1

1

10. Table dressing

1

1

Note.-In the case of dressings, medical and surgical equipments, other centre equipments and furniture, a 50% increase in the number shown above for 2,000 workers shall be made for every additional 1,000 workers.

III

(See rule 38)

Standard Of Facilities For Education And Recreation Welfare Centre

I.

ACCOMMODATION

(a)1. One hall of 45 square metres.

2. Two rooms of 15 square metres each.

3. Covered verandah 18 square metres.

4. One lavatory for men.

5. One lavatory for women.

6. One bath room for children.

(b) Play ground of the size of 36 metres x 18 metres.

(c) Children's Park equipments

(i) Swing

1 set

(ii) Ocean wave

1

(iii) See-Saw

1

(iv) Slides

1

II.

STAFF

1. Adult Education Instructor-cum-Games Supervisor

1

2. Sevika

1

III.

FURNITURE AND EQUIPMENT

1. Table

1

2. Chair

2

3. Chair Steel folding

6

4. Notice Board

1

5. Benches

1

6. Black Board

1

7. Steel Almirah

1

8. Coir mat 15 metres x 1 metre

1

9. Radio with loud-speaker

1

10. Slates, Slate Pencils, Chalk, etc.

As necessary

11. Books, charts, maps, etc.

As necessary

12. Petromax (if no electricity is available)

1

13. Dholak

1

14. Jhals

4 pairs

15. Volley ball Court equipment, ball, etc.

1 set

16. Tennikoit set

1

17. Carrom Board

2

18. Chess

2

19. Ludo

3

20. Newspapers and Periodicals

As necessary

21. Sewing machine

1

22. Scissors

1 pair

23. Tape

1

24. Knitting and crochet needles

As necessary

25. Raw Materials

As necessary

26. Gong

1

[Form A]

[Substituted by the Limestone and Dolomite Mines Labour]

(See rule 32)

Certificate Of Inspection

Inspection report of the Dispensary or hospital atby the.....for the year

1. Name of Limestone and Dolomite Mine/Limestone/Dolomite Mine served by Dispensary or hospitals.

2. Number of workers for which it caters.

3. Date and hour of inspection.

4. Date of last inspection.

5. Dispensary or hospital buildings. -

(a)

Condition of Dispensary or hospital buildings.

(b)

Does the accommodation provided conform to the prescribed standard ?

6. Medicines.-

(a)

Is the supply sufficient and according to the prescribed scale?

(b)

Are the poisons labelled and kept separately under lock and key ?

7. Surgical instruments and equipments

Are they sufficient and in good order ?

8. Staff Acquittance Rolls-Are they in order and up-to-date ?

9. Registers and Returns-Are these properly kept and regularly submitted?

10. Establishments

(a)

Officer-in-charge

(i)

Part-time/whole-time

(ii)

Name and qualifications

(b)

Designation and pay of staff

(i)

Medical Graduate

(ii)

Medical Licentiate

(iii)

Lady Doctor

(iv)

Nurse

(v)

Compounder

(vi)

Auxiliary Nurse/Midwife

(vii)

Male Dresser

(viii)

Female Dresser

(ix)

Sweeper

(x)

Peon

(xi)

Chowkidar

(c)

Attendance Register-Do the staff attend regularly ?

11. Annual expenditure on

(a)

Establishment

(b)

Medicines

12. Out-patients-

(a)

Number seen at the time of visit

(b)

Total number of new patients treated in current year up-to-date

(c)

Total number of old patients treated in current year up-to-date

(d)

Total treated drug the last year

(e)

Do the entries on tickets of patients present tally with the entries on the Registers

(f)

Are there any arrangement for treating women apart from men ?

13. In-patients

(a)

Number seen at the time of visit.

(b)

Total number of patients in current year up-to-date.

14. Are you satisfied with the working of the dispensary or hospital ?

If no, what suggestions can be made for its improvement ?

I certify that I have inspected the dispensary or hospital noted above and that conforms/does not conform in the following respects* to the standards laid down in the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973.

.....

Signature of the Inspecting Officer

Date

Counter-signature of Commissioner with date.

*Give details below.

Note.-The counter-signature of the Commissioner is not necessary when the Commissioner himself is the Inspecting Authority.

Form B

(See rule 35)

Certificate of Inspection

Inspection report of the Maternity Centre atby the.....for the year..... ending20.....

1. Name of limestone and dolomite mine/limestone/dolomite mine served by the Maternity Centre.

2. Number of workers for which it caters.

3. Date and hour of inspection.

4. Date of last inspection.

5. Maternity Centre Buildings

(a)

Condition of Maternity Centre Buildings.

(b)

Does the accommodation provided conform to the prescribed standard ?

6. Medicines-

(a)

Is the supply sufficient and according to the prescribed scale?

(b)

Are the poisons labelled and kept separately under lock and key?

7. Surgical Instruments and equipments

8. Are they sufficient and in good order?

9. Staff Acquittance Rolls-Are they in order and up-to-date?

10. Registers and Returns-Are these properly kept and regularly submitted?

11. Establishment

(a)

Officer-in-charge

(i)

Part-time/whole-time

(ii)

Name and qualifications

(b)

Designation and pay of staff-

(i)

Medical Graduate

(ii)

Medical Licentiate

(iii)

Lady Doctor

(iv)

Compounder

(v)

Nurse

(vi)

Mid-wife

(vii)

Ayai,

(viii)

Sweeper

(ix)

Ward Attendant

(x)

Cook

(c)

Attendance Register-Do the staff attend regularly?

12. Annual expenditure on

(a)

Establishment

(b)

Medicines

13. Out patients

(a)

Number seen at the time of visit

(b)

Total number of new patients treated in current year up-to-date

(c)

Total number of old patients treated in current year up-to-date

(d)

Total treated during the last year

(e)

Do the entires on tickets of patients present tally with the entries on the registers

14. Are you satisfied with the working of the Maternity Centre ? If not, what suggestions can you make for its improvements ?

I certify that I have inspected the Maternity Centre noted above and that conforms/does not conform in the following respects to the standards laid down in the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973.

.....

Signature of the Inspecting Officer

Date

Counter-signature of Commissioner with date.

*Give details below.

Note. - The counter-signature of the Commissioner is not necessary when the Commissioner himself is the Inspecting Authority.

Form C

(See rule 39)

Certificate Of Inspection Of The Welfare Centre

Inspection report of the Welfare Centre atby the..... for the year ending.....20.....

1. Name of limestone and dolomite mine/limestone/dolomite mine served by the centre.

2. Number of workers for which it caters.

3. Date and hour of inspection.

4. Date of last inspection.

5. Centre building-

(a)

Condition of the building.

(b)

Does the accommodation provided conform to the prescribed standard ?

6. Equipment

(a)

Are the equipments provided according to the prescribed standard ?

(b)

Is timely repairs/replacements done where necessary ?

(c)

Are the equipments all in serviceable condition ?

7. Establishments

(a)

Officer-in-charge-

(i)

Part-time/whole-time

(ii)

Name and qualifications

(b)

Designation and pay of staff-

(i)

Adult Education Instructor

(ii)

Sevika

(iii)

Sweeper

(c)

Attendance Register-Do the staff attend regularly ?

8. Annual expenditure-

(a)

Establishment

(b)

Repairs and replacement of equipments

9. Activities -

(a)

Total number of rolls attending the centre.

(b)

Number seen at the time of inspection.

(c)

Number of adults attending literacy classes

(d)

Number of women attending craft classes

(e)

Number of adults participating in games and sports

10. Are you satisfied with the working of the Centre ? If not, what suggestion can you make for its improvement?

I certify that I have inspected the Welfare Centre noted above and that it conforms/does not conform in the following respects to the standards laid down in the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973.

.....

Signature of Inspecting Officer

Date

Counter-signature of Commissioner with date.

*Give details below.

Note.-The counter-signature of the Commissioner is not necessary when the Commissioner himself is the Inspecting Authority.

Form D

(See rules 43 and 44)

Register Or Return Of Actual Production And Disposal Of Limestone/dolomite And Duty Assessed And Paid On Provisional Basis On The Mineral Used By Owner Of Mine

Month year.....

Name of the mine

Name of owner of mine

Full address

Production of limestone/dolomite (in tonnes)

Opening stock on the 1st day of the month to which the return pertains

Output of limestone/dolomite during the month

Total

Sl. No.

Limestone

Dolomite

Limestone

Dolomite

Limestone

Dolomite

1

2

3

4

5

6

7

Disposal of limestone/dolomite (in tonnes)

Used by owner of mine for any purpose in connection with the manufacture of cement, iron or steel

Sold or otherwise disposed of to occupier of any factory Address

Quantity

Limestone

Dolomite

Limestone

Dolomite

8

9

10

11

12

13

[***]

[Omitted by the Limestone and Dolomite Mines Labour Welfare Funds (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

Quantity

Closing stock on the last day of the month (in tonne)

Duty in rupees on limestone/dolomite used by owner of mine

[Particulars of payment including number, date and amount of the cheque or demand draft and number and date of covering letter with which it was forwarded to the Commissioner]

[Substituted by the Limestone and Dolomite Mines Welfare Funds (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

Limestone

Dolomite

Limestone

Dolomite

14

15

16

17

18

19

Certified that the above statements are true to the best of my knowledge and belief and are based on the records maintained in my mine.

Name

Date

Place

.....

Signature

Owner/Partner/Director/Agent/Manager

(affix seal)

[Form D-1]

[Inserted by the Limestone and Dolomite Mines Labour Welfare Fund (Second Amendment) Rules, 1983 (w.e.f. 13-8-1983)]

(See rules 43 and 44)

Register Of Receipts And Disposal Of Limestone/dolomite And Duty Of Excise Assessed And Paid To The Occupier Of A Factory

Name of the purchasing agent/stockist

Full address

Receipt of limestone/dolomite

(in tonnes)

Disposal of limestone/dolomite (in tonnes)

Sl. No.

Opening stock on the 1st day of the month

Receipt of limestone/dolomite during the month with address of the suppliers

Total (Cols. 2 and 4)

Export sold or otherwise disposed of to occupier of factory with address of such occupier

Address

Quantity

Address

Quantity

1

2

3

4

5

6

7

Closing stock on the last day of the month (in tonnes)

Duty (in Rs.) on limestone/dolomite sold or otherwise disposed of to the occupier of the factory

Particulars of payment made to the occupier of the factory

Date

Amount

Mode of payment

Remittance in cash/cheque

Deduction from bill

8

9

10

11

12

13

Signature

Purchasing agent/stockist.

Form E

(See rules 43 and 44)

Register Or Return Of Actual Receipt Of Limestone/dolomite And Duty Received Or Collected Thereon And [Remitted By Cheque Or Demand Draft,]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

By Occupier Of Any Factory

Month year

Name of occupier of factory

Full address

Receipt of Limestone/dolomite

(in tonne)

Closing stock on the last day of the month (in tonne)

Opening stock on the 1st day of the month to which the return pertains

Receipt of limestone/ dolomite during the month

Total

Limestone

dolomite

Sl. No.

Limestone

Dolomite

Limestone

Dolomite

1

2

3

4

5

6

7

8

Duty (in rupees) received

Manner of collection

[Particulars of payment including number, date and amount of the cheque or demand draft and the number and date of covering letter with which it was forwarded to the Commissioner]

Duty received on limestone/dolomite (col. 4 and 5]

[***]

Deduction from bill of payment

(Number and date) and person (with address) to whom paid

9

10

11

12

Certified that the above statements are true to the best of my knowledge and belief and are based on the records maintained in the factory occupied by me.

Number

Date

Place

.....

Signature Occupier of (affix seal)

Form F

[See rule 47 (4)]

Intimation Of Duty Of Excise Deducted From Bill Of Payment

Number Dated, the.....

From

.....

.....

(Name and address of occupier)

To

(Name and address of person by whom limestone or dolomite is sold or otherwise disposed of to occupier.)

Sir,

Subject :- Intimation of duty of excise deducted from bill of payment under the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972

This is to notify that the duty of excise calculated @per tonne, as fixed under section 3 of the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972, on the consignment of limestone or dolomite of.....(amount of limestone or dolomite in tonnes) dispatched under your memo.....(Number and date) works out to Rs.....and that this

amount was received in cash or by bank draft ondeducted from your bill Nodated.....

Yours faithfully

.....

Signature

Registered, Acknowledgment Due, Copy (with a spare copy) forwarded to the

(Address of the Commissioner)

.....

Signature

Registered Acknowledgment Due

Form G

(See rule 49)

Confirmation Of Provisional Assessment Of Duty Of Excise By Owner Of Mine

To

(Mine owner)

.....

Signature

(Address)

With reference to the Return in Form D of the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973, submitted by you in respect of themine for the month of20.....you are hereby informed that the provisional assessment of duty of excise a8rttonne amounting to Rs.....(Rupees.....) only paid by you as per [crossed cheque or crossed demand draft Nodated.....]

[Substituted by Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26-8-1978).] has been confirmed.

Commissioner

Seal of the Commissioner

Number

Date

Place

Registered Acknowledgment Due

Form H

[See rule 49(1)(b)]

Notice To The Owner Of Mine

To

(Mine Owner)

.....

(Address)

*Whereas I desire to satisfy myself that the Return in Form D of the Limestone and Dolomite Mines Labour Welfare

Fund Rules, 1973, filed by you in respect ofmine for the month20..... is correct and complete.
You are hereby directed to clarify the following points/produce the following documents/submit a revised return in Form D on or before

*Whereas you have not furnished a return in Form D in respect ofmine for the month(s) of20..... by the specified date(s);

You are, therefore, required to submit a return within one month from the date of issue of this notice for the month(s) of20..... in Form D of the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973.

2. In the event of your failure to comply with this notice, I shall proceed to assess the duty to the best of my judgment under clause (d) of sub-rule (1) of rule 49 of the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973, without further reference to you and you will also further be liable to prosecution under rule 45.

Commissioner

Seal of the Commissioner

Number

Date

Place

*Strike out which is not applicable.

Registered Acknowledgment Due

Form I

[See rule 49(1)(d)]

To

(Owner/Partner/Director/Manager/Agent) of(mine) at.....(location of mine P.O.....
District in the State of.....

In continuation of the notice in Form H issued to you per regd. post on theday of 20..... /As a result of the verification of the return in Form D filed by you for the month(s) of20.....

In continuation of the notice in Form H issued to you per regd. post on theday of 20.....

You are hereby informed that your total consumption of limestone and dolomite during the month(s) of20.....has been finally determined at.....tonne and accordingly duty of excise amounting to Rs(Rupees.....) only is payable by you thereon.

2. [You are hereby directed to pay the sum of Rs(Rupees.....) only as detailed below by sending a crossed cheque or crossed demand draft todrawn in his favour and payable at(station) with a covering letter quoting reference of demand notice.])

[Substituted by Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

3. If you do not pay the amount on or before the period specified above, you shall be liable to pay simple interest @ 12% per annum in accordance with section 11 of the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972 and also to pay penalty (which may be as great as the amount of duty in arrears) as maybe imposed on you in accordance with section 12 of the Act.

4. If you do not pay the amount within the period specified above, proceedings for the recovery thereof shall be taken in accordance with section 12 of the Act.

Commissioner

Details of assessed amount

1. Amount of cess payableRs.....

2. Deduct amount already paid by you as per [crossed cheque or demand draft number date]

[Substituted by Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

3. Net amount payableRs.....

Seal of the Commissioner

Number

Date

Place

Form J

[See rule 50(1)]

Confirmation Of Provisional Assessment Of Duty Of Excise Made By The Occupier Of A Factory

To

.....
.....

(Name and address of occupier)

With reference to the intimation in Form F(number and date) sent by you in respect of the consignment of limestone/dolomite received from(Name and address of the person), you are informed that the provisional assessment of duty of excise on tonne amounting to Rs(Rupees.....) only collected by you is hereby confirmed.

Commissioner

Seal of the Commissioner

Number

Date

Place

Registered Acknowledgment Due

Form K

[See rule 50(1)(6)]

Notice To Occupier Of A Factory

To

(Occupier of factory)

(Address)

{|

|-

| Whereas I desire to satisfy myself that the| Return in Form E information in Form F| of the Limestone

|}

and Dolomite Mines Labour Welfare Fund Rules, 1973, filed by you in respect oflimestone or dolomite received by you during the month of.....20..... is correct and complete.

You are hereby directed to clarify the following points/produce the following revised return in Form E documents/submit aon or before.....

Whereas you have not furnish| a return in Form E information in Form F| in respect of

oflimestone or dolomite received in your factory during the month(s) of20.....by the specified date(s).

You are, therefore, required to submit a return/information within one month from the date of issue of this notice for the month(s) of20.....in Form E/F of the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973.

In the event of your failure to comply with this notice, I shall proceed to assess the duty to the best of my judgment under [clause (d) of sub-rule (1) of rule 50]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Third Amendment) Rules, 1983 (w.e.f. 3-3-1984).]

of the Limestone and Dolomite Mines Labour Welfare Fund Rules, 1973, without further reference to you and you shall also further to liable to prosecution under rule 45.

Commissioner

Seal of the Commissioner

Number

Date

Place

Registered Acknowledgment Due

Form L

[See rule 50(1)(d)]

Demand Notice To Occupier Of A Factory

To

..... Occupier of..... factory at..... (location of factory)..... P.O

.....District.....in the State of.....

In continuation of the notice in Form K issuedAs a result of the verification of the
to you per registered post on the.....return in Form E filled by you for the month(s) information in Form F sent
by you on

You are hereby informed that the total amount of the limestone or dolomite received by you during the month(s) of
.....20.....has been finally determined.....tonne and accordingly duty of excise amounting of Rs
.....(Rupees.....) only is payable by you thereon.

2. [You are hereby directed to pay the sum of Rs(Rupees.....) only as detailed below by sending
a crossed cheque or crossed demand draft to bedrawn in his favour and payable at(station)
within 45 days of service of this notice with a covering letter quoting reference of the demand notice.]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

3. If you do not pay the amount on or before the period specified above, you shall be liable to pay simple interest 12%
per annum in accordance with section 11 of the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972, and
also to pay penalty (which may be as great as the amount of duty in arrear as may be imposed on you in accordance
with section 12 of the Act.

4. If you do not pay the amount within the period of specified above, proceedings for the recovery thereof shall be taken
in accordance with section 12 of the Act.

Commissioner

Details of assessed amount

1. Amount of cess payableRs.....

2. Deduct amount already paid by you as per [cheque or demand draft numberand date.....]

[Substituted by the Limestone and Dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

3. Net amount payableRs.....

Seal of the Commissioner

Number

Date

Place

Registered Acknowledgment Due

Form M

(See rule 51)

Notice

To

.....Owner of Mine

.....Occupier of factory

Whereas it appears tome that you were required to pay Rson account of duty of excise to the Central
Government under section 4 of the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972 on

2. You are hereby directed to appear in person or through a duly authorised representative before me to show cause
why a penalty should not be imposed on you under section 12 of the Act.

3. In the event of your failure to comply with this notice, I shall proceed to decide the case to the best of my judgment
without further reference to you.

Commissioner

Seal of the Commissioner

Number

Date

Place

Registered Acknowledgment Due

Form N

(See rule 51)

Demand Notice

To

.....Owner of the Mine

.....Occupier of the factory

The Limestone And Dolomite Mines Labour Welfare Fund Rules, 1973

In continuation of the notice in Form M issued to you by registered post on theday of.....20..... you are hereby informed that an amount of Rshas been imposed by me as penalty on the arrears of excise duty amounting to Rsand payable by you under section 4 of the Limestone and Dolomite Mines Labour Welfare Fund Act, 1972.

You are hereby directed to pay the sum of Rs(Rupees.....) only on account of arrears of duty of excise and penalty by sending a crossed cheque or crossed demand draft todrawn in his favour and payable at.....(station) on or before theday of.....20.....failing which the said sum of Rs(Rupees.....) only shall be recovered from you are arrears of land revenue.]

[Substituted by the Limestone and dolomite Mines Labour Welfare Fund (Amendment) Rules, 1978 (w.e.f. 26-8-1978).]

Commissioner

Seal of the Commissioner

Number

Date

Place

Related AI tags, queries and research notes

Translation